DOCUMENT FOR COMMISSION REVIEW

Red Light Camera Enforcement & License Plate Recognition Monitoring System

Request for Proposals # AD-14-10

THE CITY OF PEMBROKE PINES
PURCHASING DIVISION
13975 PEMBROKE ROAD
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ATTACHMENTS

Attachment A: Proposal Form
Attachment B: Vendor Information Form and a W-9
Attachment C: Non-Collusive Affidavit
Attachment D: Sworn Statement on Public Entity Crimes Form
Attachment E: Local Vendor Preference Certification
Attachment F: Veteran Owned Small Business Preference Certification
Attachment G: Equal Benefits Certification Form
Attachment H: Proposer's Completed Qualification Statement
Attachment I: Sample Insurance Certificate
Attachment J: City Ordinance 1665
Attachment K: References Form

SECTION 1 - INSTRUCTIONS

1.1 NOTICE

Notice is hereby given that the City Commission of the City of Pembroke Pines is seeking sealed proposals for:

RFP # AD-14-10
Red Light Camera Enforcement & License Plate Recognition Monitoring System

Solicitations may be obtained from the City of Pembroke Pines website at http://www.ppines.com/index.aspx?NID=667 and on the www.BidSync.com website.

If you have any problems downloading the solicitation, please contact the BidSync Support line at 1-800-990-9339.

If additional information help is needed with downloading the solicitation package please contact the Purchasing Office at (954) 704-1259 or by email at purchasing@ppines.com. The Purchasing Office hours are between 7:00 a.m. - 6:00 p.m. on Monday through Thursday and is located at 13975 Pembroke Road, Pembroke Pines, Florida 33027.

The City requires all questions relating to the solicitation be entered through the "Ask a Question" option tab available on the BidSync website. Responses to the questions will be provided online at www.bidsync.com. Such request must be received by the "Question Due Date" stated in the solicitation. The issuance of a response via BidSync is considered an Addendum and shall be the only official method whereby such an interpretation or clarification will be made.

Proposals will be accepted until 2:00 p.m., Tuesday, _____, 2015. Proposals must be **submitted electronically at www.BidSync.com**. The sealed electronic proposals will be publicly opened at 2:30 p.m. in the Office of the City Clerk, Administration Building, 10100 Pines Boulevard, Pembroke Pines, Florida, 33026.

1.2 INTRODUCTION

The purpose of this Request for Proposals is to obtain the services of a firm for the implementation of a red light camera ("RLC") enforcement program and license plate recognition (LPR) monitoring system, including installation and maintenance of hardware, software and equipment, training, maintenance and technical support. The City is soliciting proposals for the implementation, maintenance and servicing of the Program. All design and equipment for RLCs must be certified and approved by the State of Florida prior to execution of an Agreement. The self-managed RLC enforcement program and LPR monitoring system will enable real-time 24x7 monitoring and alerting of red-light camera violations and LPR readings that leverage a new IP-based camera system. In addition, back office functions such as violation identification and citation creation, review and integration to FL DHSMV via real time data exchange, check workflows will be integrated to provide a turnkey system for enforcement of

red light infractions and real-time LPR traffic checks. The system shall combine vehicle detection and digital imaging technology with a complete turnkey program for supplying, installing, powering and maintaining the cameras and the supporting applications, databases and all associated hardware on behalf of the City of Pembroke Pines, in conformity with the requirements contained herein and mandated by the State of Florida. All equipment specified herein shall be owned by the City of Pembroke Pines.

In addition, the system shall provide the ability for the City of Pembroke Pines to administer and service the program through the issuance of notices (all notices required by law); processing of payments; issuance of citations; customer service and internet/web – based applications, schedule and notice local hearings at City Hall; and preparation of evidence packets to fully comply with the requirements of Broward County traffic court hearing officers, Broward County judges and Florida law.

The successful proposer will have demonstrated that if it is awarded the contract, its equipment, software applications, system integration, processes and documentation will fully comply with any and all state law and regulations and have the documentation to defend hardware and software challenges in a court of law. Further, the successful proposer shall provide full support with modifying the RLC and LPR systems to comply with any and all amendments to state law and regulations.

The City has a red light traffic signal camera enforcement program that has been in place since 2009. In 2010, the City adopted Ordinance No.1665, attached hereto (**Attachment J**), which implemented the statutorily authorized program pursuant to Section 316.0083, Florida Statutes, known as the Mark Wandall Traffic Safety Program.

1.3 BACKGROUND

The City of Pembroke Pines has a population of approximately 152,000 and is located in a high density traffic area that regularly experiences traffic incidents due to the failure of motorists to obey duly erected traffic control devices, which exposes citizens to the dangers of personal injury and property damage.

The City is soliciting proposals for the implementation, maintenance and on-going support of this program through an integrated suite of hardware, application design, and data integration.. All design and equipment for RLCs must be certified and approved by the State of Florida prior to execution of an Agreement. The system will combine vehicle detection and digital imaging technology with a complete turnkey program for supplying, installing, powering, and maintaining the cameras including a back office violation processing service with the ability to:

(a) Review images of red light violations and LPR traffic alerts
(b) View search and archiving of violations and LPR alerts
(c) Access motor vehicle registration data through a duly qualified method authorized by the Florida DHSMV.
(d) Ability to validate violations via sworn officer.
(e) Automated notifications of LPR alerts via graphical interface

(f) Ability to perform final quality control
(g) Print and mail notices of violation and uniform traffic citations in compliance with all laws and regulations
(h) Ability to track and collect fines in person and online
(i) Assist the City in coordinating payment of portions of the fine to other agencies as required by the State Law to include associated reporting
(j) Provide all required documentation for court hearings, including pleadings necessary to ensure the admissibility of the documentation necessary to prove a violation in court, as may be determined by the individual presiding hearing officers and judges.

This application and supporting sub systems should be web-based and accessible by internal users using a web browser, with security authorization being defined through Microsoft active directory integration.

The equipment shall include, but is not limited to, poles, cabinets and related operational equipment at the selected intersection(s), including signage. All equipment shall comply with the Florida Department of Transportation Traffic Infraction Detector Equipment and Testing Specifications, dated December 16, 2010, or as may be amended from time to time and shall be installed pursuant to Florida Department of Transportation Traffic Infraction detector Placement and Installation Specifications, dated April 1, 2011, as may be amended from time to time. In the event of a conflict between the specifications requested herein and Florida Department of Transportation Specifications, the Florida Department of Transportation Specifications shall prevail. **The proposer shall be responsible for determining and specifically identifying any such conflicts within its Proposal. The proposer will provide a support agreement and be responsible for keeping up with software and/or hardware compliance changes for a reasonable fee to include timely compliance upgrades.**

The City currently has twenty-four (24) cameras at twenty-two (22) approaches installed. The City's current vendor will be responsible for the removal of its equipment at the locations listed below:

Current Red Light Camera Locations	
1	Eastbound Pines Blvd & Palm Ave
2	Westbound Pines Blvd & Palm Ave
3	Westbound Pines Blvd & Flamingo Road
4	Eastbound Pines Blvd & Dykes Road
5	Southbound University Drive & Pines Blvd
6	Northbound Flamingo Road & Sheridan Street
7	Eastbound Pines Blvd & 118th Ave
8	Westbound Pines Blvd & 155th Ave
9	Eastbound Pines Blvd & 150th Ave
10	Westbound Pines Blvd & University Drive (2 cameras)
11	Eastbound Pines Blvd & University Drive (2 cameras)

12	Eastbound Johnson Street & Colony Pointe
13	Northbound Flamingo Road & Pines Blvd
14	Westbound Taft Street & Hiatus Road
15	Eastbound Taft Street & Hiatus Road
16	Westbound Pines Blvd & 136th Ave
17	Eastbound Pines Blvd & Flamingo Road
18	Westbound Pines Blvd & 72nd Ave
19	Eastbound Pines Blvd & 136th Ave
20	Northbound 136th Ave & Pines Blvd
21	Westbound Pembroke Road & 129th Ave
22	Eastbound 129th Ave & Pines Blvd

The proposed solution shall have the capability to monitor red light violations and track license plates with a single camera. If the Proposer does not have the capability to combine the RLC and LPR technology into a single camera, the Proposer shall so state, and provide per-camera, per approach pricing for each (RLC and LPR). Proposer shall identify the process required to obtain authorization to install LPR technology within the right-of-way for the various jurisdictions within the City limits (City, County, and State roads); Proposer shall specify and estimated time frame to obtain such authorization. Proposer shall identify the process required to obtain authorization to install RLC technology within the right-of-way for the various jurisdictions within the City limits (City, County, and State roads); Proposer shall specify and estimated time frame to obtain such authorization. Below is a list of intersections and approaches which the City is considering for red light camera enforcement (up to 7 lanes of traffic per approach):

Proposed Locations for Red Light Camera		**Lanes Monitored**	**# of Lanes**
1	Eastbound Pines Blvd & 129th Ave	←←↑↑↑↑→	3
2	Northbound SW 136th Ave & Pines Blvd	←←↑→→	3
3	Eastbound Pines Blvd & 136th Ave	←←↑↑↑↑→	4
4	Westbound Pembroke Road & SW 129th Ave	←↑↑→	3
5	Northbound Flamingo Road & Pines Blvd	←←↑↑↑→	5
6	Eastbound Pines Blvd & Flamingo Road	←←↑↑↑↑→	6
7	Eastbound Johnson Street & Colony Point Drive	←↑↑	3
8	Westbound Pines Blvd & 72nd Ave	←↑↑↑→	3

1.4 TECHNICAL SPECIFICATIONS

1.4.1 Solution Description

The solution will monitor RLC and license plate cameras situated at intersections throughout the city. The solution will initially monitor 8 red-light approaches and up to 16 LPR approaches. The software will process the video feeds from the overview cameras in real-time and determine when a vehicle has illegally violated a red light signal and identify and alert on suspicious license plates. The solution shall be scalable so that it can cover other intersections across the city in the future.

The solution will send the exact location of violation, time of day, and a 15-second video clip with vehicle license plate as evidence of a Red-light infraction to an operator for validation. Using this information an operator will then be empowered to make a decision based on all the evidence provided, including full playback of the entire event, and take corrective steps as appropriate. Template forms will be automatically generated for both evidence as well as Citation creation for each red-light violation. A custom citation records management system (CRMS) will be developed by vendor to:

- Enable the City of Pembroke Pines to process and manage the workflow from Notice of Violation (NOV) issuance through final disposition.
- Create a User Violator Portal for NOV payment
- Create a Magistrate Portal to administer violation hearings
- Create a Cashiering Portal to integrate with the City's cash receipts system and record payments received by CITY directly
- Provide methodology to administer the System and Security
- Systems used must be designed with embedded reporting options for all violation and LPR reporting processes and additionally the ability to create ad hoc reports.
- Create reporting views and reports for standard analysis

Additionally, the LPR system will identify stolen vehicle, vehicle of interest and alert in real time the city police officers via an application interface. The LPR system will allow the City to configure various search parameters to identify vehicles of interest and provide instant alerts on the City's Computer Aided Dispatch (CAD) system.

The vendor shall provide:

1) A functional and reliable system with minimal down time.
2) A system that is fully compliant with all related agencies, laws, and regulations.
3) A defined support request protocol for telephone/online technical support for both hardware and software needs.
4) Functional Requirements
    a) Issuance of a Notice of Violation (NOV)
    b) Accepting Violator Payments
    c) Hearing Scheduling and Processing
    d) Transferring Liability pursuant to Florida Law
    e) Transitioning a NOV to a Uniform Traffic Citation (UTC) including
        1. a second review queue prior to issuance of the UTC and;
        2. Obtaining and maintaining a list of authorized UTC numbers issued by the State of Florida.
5) Each NOV should have a unique id and bar code.
6) UTC - request, store, track, and print citation numbers received from Broward County Courts
7) Interface with outside agencies.
    a) Broward County Courts

b) Florida Department of Highway Safety and Motor Vehicles (DHSMV / DMV)
c) Florida Department of Law Enforcement (FDLE)
d) National Crime Information Center (NCIC)
e) Lock Box for payment processing
f) Florida Department of Transportation (FDOT)

8) Automatically meet statutorily mandated retention requirements. (Pictures, Video, NOV, UTC, affidavits, hearing documentation, maintenance and calibration records, etc.) With the ability to extend such retention times as may be required for presentation of evidence.
9) System Administrator should have a comprehensive set of controls. Such as:
   a) Set fine amounts.
   b) Set number of days for deadlines.
   c) Set acceptable payment types (cash, check, credit card, EFT, lock box, data file).
   d) Set up users. (Ids, passwords, security permissions).
10) Comprehensive Data Reporting options
   a) Reports should be exportable to EXCEL format.
   b) Data should be able to be saved as a csv file.
11) Data stored in MS-SQL database.
12) High level of security across all interfaces and the ability to provide documentation of such security measures as may be required for trial and other court matters.
13) Requirements for approved system by FDOT.

1.4.2 Camera System

1) The equipment shall provide a reliable non-intrusive, non-physical connection to the red phase that is transmitted from the Broward County Traffic Signal. The equipment shall be capable of functioning in a wide range of operating conditions; e.g., heavy traffic volumes; adverse weather conditions; nighttime and daytime; non-standard road surface configurations and across five (5) moving lanes of traffic. ***All systems must be non-intrusive to roadway or transportation signal cabinetry.***

2) Use of a high quality and resolution IP digital camera system with an output in excess of 3000 x 2000 pixels per image is required. Proposer must detail the image quality specifications and provide real sets of violation image examples captured in daytime, nighttime, during inclement weather, and during times where sunlight is pointing in the direction of the camera.

3) The equipment should be capable of gathering traffic data for statistical analysis. Copies of sample reports shall be attached to the proposal.

4) The images and video shall, at a minimum, comply with Florida Department of Transportation Traffic Infraction Detector Equipment Specifications. The

Camera System must provide at least three (3) digital color still images of each violating event as specified by law. The images must be taken so that the rear of the vehicle and license plate are captured and are clearly readable. The first image shall capture the vehicle before the front wheels strike the crosswalk or legal infraction limit line. The second image shall capture the vehicle after the rear axle has crossed the crosswalk or legal limit line of demarcation as defined by Florida Law. The third image shall depict a close-up of the license plate. In addition, the camera must have the capability to capture a short duration audio/video clip of the infraction (minimum of 15 seconds)

5) The Camera System shall record data pertinent to each infraction at the time of capture. Data shall be recorded in a flexibly configured data bar that is embedded with each scene, license plate and stop bar detection images that may be used to prove the infraction in a court of law. The data bar shall include, but is not limited to, the following information for each infraction:

a) Unique infraction identifier;
b) Location of infraction;
c) Date (MM/DD/YYYY);
d) Time of the infraction in 24 hour clock including hours, minutes and seconds;
e) Elapsed time between images;
f) Direction of travel and approach;
g) Traffic signal phase;
h) Time into the red phase displayed in thousandths of a second;
i) Duration of the prior amber phase;
j) Vehicle lane of travel;
k) Camera ID; and
l) Frame sequence number.

6) The system must provide a video as supporting information to the violation provided by the still images. The video must be full motion at the rate of 30 frames per second or greater and allow aperture adjustment.

7) Each imaging unit's operation shall be microprocessor controlled and fully automatic.

8) The Camera System shall be capable of on-site or remote activation and maintenance support.

9) The Camera System shall perform self-test on set-up; simulate a violation being recorded for testing; communicate error messages immediately and record date and time of system shutdown in the event of a malfunction.

10) The Camera System shall allow a malfunction to be easily identified and debugged on-line.

11) The Camera System shall record event-specific evidence to substantiate multiple, simultaneous and/or concurrent violations occurring during any red signal phase (Sample violation images to demonstrate this capability are required and shall be submitted as part of this proposal.)

12) The Camera System shall provide 24 hours a day/365 days a year "real time" intersection remote monitoring and viewing capabilities as well as the ability to generate statistical user-defined reports as further detailed below. Further, the Camera System shall have the ability to archive and retrieve video independent of a red light violation for a minimum period of forty five (45) days or until a violation or citation is paid or adjudicated; whichever is later. This is very valuable for accident reconstruction, crime investigations, etc. Please provide if applicable, specific examples of customer successes utilizing this benefit.

13) All camera system component operations must be synchronized to a single, standard, independent, external and verifiable time and date source.

14) The selected Proposer must propose more than one vehicle detection method (In-ground loops will not be considered)

15) Red light camera enclosures must be tamper-proof and vandal-proof.

16) Red light camera enclosures must be as small as possible and use as little power as possible.

17) Red light camera enclosures must be designed in such a fashion that maintenance and other operations can be accomplished easily and quickly without creating a public safety hazard.

18) In addition to monitoring straight-through violations, the system shall be capable of detecting and recording evidence of left and right turn violations, regardless of vehicle speed.

19) Installation and maintenance requirements should be such that they minimize downtime and non-operational time of the system and the individual cameras.

20) Proposer must have emergency recovery plan that minimizes downtime resulting from unforeseeable circumstances (i.e. power outages, accidents involving the traffic poles, severe storms, hurricanes, etc.) and during emergency/disaster conditions.

1.4.3 License Plate Recognition

The ability to easily identify and track vehicles is key to the success of any traffic law enforcement agency. This can be accomplished automatically, with instant correlation

and cross-referencing of license plates, appropriate action can be taken quickly and confidently.

License Plate Recognition (LPR), delivers a crucial advantage in traffic law enforcement, but also provides a wide range of commercial applications. The system identifies and tracks vehicles in all conditions to trigger responses automatically. The system shall provide a comprehensive, end-to-end solution that encompasses several aspects of vehicle recognition and tracking, together with advanced recording, retrieval, and analytical capabilities. The system shall automatically correlate and cross-reference identified license plates with other data, making conceptual associations between recorded plates and other pieces of intelligence. The solution shall identify plates automatically from single images or video streams and shall be compatible with all existing CCTV systems.

The system shall include:

a. A LPR system which identifies vehicles of interest and alerts the city police officers via an application interface.
b. Ability to identify, track vehicles within Pembroke Pines (real time) and automatically
c. Ability to determine when a vehicle has illegally violated a red light signal
d. A solution which can be scaled in the future to cover other intersections across the city.
e. Use of software for processing video feeds from the overview cameras
    i. Includes advanced recording, retrieval, and analytical capabilities.
    ii. Real-time and identify and alert on suspicious license plates.
f. Correlation of identified license plates with stolen vehicle registers
g. Identify associated traffic and law enforcement records, credit card transaction reports, and customer records
h. Ability for operator to display LCD text, play WAV file to signal an alarm, alert supervisor via email, store image of vehicle into data base, or increase/start frame rate for higher quality recording at critical moments
i. Ability to search single or multiple cameras/databases simultaneously through one interface, and specify search parameters including plate/partial plate matching, camera, date, time, database alert code, category, and time on site.
j. Encryption and unique image identifiers based on FDLE, NCIC and other state requirements
k. Comprehensive Data reporting options: excel format. Integration into a CSV file.
l. Special requirements of stolen vehicle or vehicle of interest alert system
    i. Search & Collect stolen vehicle information from FDLE, NCIC database (Via a file provided by Police Department or direct API)
    ii. An interface for managing vehicle of interest – adding number plate for monitoring, deleting number plate from monitoring, and specifying other search parameters.
    iii. An alert interface accessible by Police Officers on their City-issued laptop when connected to the City's IT network

1.4.3.1 Database integration and action assignment

The system shall provide full support for SQL database connectivity with the ability to add license plates and associated metadata to the existing internal or external SQL database to enable automatic cross-referencing. The system shall deliver instant plate matching, fuzzy-logic based matching, and correlation of identified license plates with stolen vehicle registers, traffic and law enforcement records, credit card transaction reports, and customer records. In addition the system shall have full integration with local and remote repositories to facilitate an interpretation of the potential significance of certain activities.

Once vehicles are logged into the database, the system shall allow the user to assign actions via a code to each license plate so that predefined instructions or actions will be followed on identification: display LCD text, play WAV file to signal an alarm, alert a designated supervisor via email, store image of vehicle, or increase/start frame rate for higher quality recording at critical moments. The system shall allow any combination of the above activities to the plate's pass or fail activity. In addition, vehicles without readable license plates shall be identified and alerted upon accordingly.

1.4.3.2 Advanced plate searching and retrieval

The system shall provide an intuitive user interface that ensures that the information captured is easily accessible and that key events can be readily identified by the City and matched against vehicle, driver, or incident history. If images from an overview camera are available, these will display adjacent to number/license plate footage, enabling City operators to view driver images alongside plates and metadata. The system shall allow the user to search single or multiple cameras/databases simultaneously through one interface, and specify search parameters including plate/partial plate matching, camera, date, time, database alert code, category, and time on site.

1.4.4 Citation Record Management System (CRMS)

The delivery requirements are defined below as an outline; all functional requirements to ensure working system will be the sole responsibility on the solution provider. The system will be considered a beta release with the solution provider working directly with city staff to address and resolve all programming related requirements for the first 180 days of operation at no additional cost.

Requirements:

a. Software to process Red light Camera violations
    i. Manage the process workflow from time of Notice of Violation (NOV) through disposition of NOV.
    ii. A User Violator Portal for NOV payment
    iii. A Magistrate Portal to administer violation hearings

iv. A Cashiering Portal to record payments that will integrate with the City's cash receipts system.
v. A methodology to administer the System and Security
vi. A reporting process for current data entry
vii. Reporting views and reports for standard analysis

b. Electronically generated documents required for processing violations:
   i. Initial Notification of Violation (NOV)
   ii. NOV reminder
   iii. NOV payment insufficiency letter
   iv. Dismissal Notice
   v. Inadequate Information Letter
   vi. Hearing Denied Letter
   vii. Administrative Hearing Notice
   viii. Reschedule Notice
   ix. Final Administrative Order
   x. Final Dismissal order

c. A web-based portal for the Red Light Camera Program Coordinator.
d. A web-based portal for City cashiers.
e. A Web-based Magistrate portal.
f. An administrative interface that allows configuration, security, data entry, reports for standard analysis, and administration of the system.
g. A Scheduling module to enable City to reserve blocks of time for violator hearings.
h. A reporting system to provide reports to City
i. A framework through which the City can define custom reports.
j. An electronic data link to the Florida DHSMV and County Clerk.
k. An API interface to enable the selected Lockbox provider and online payment provide access and data links into CRMS
l. Affidavit import from lock box provider
m. A daily document printing interface to enable City to print and mail required documents and notices locally
n. Real-time display of key selected data metrics.

Overview of Citation Record Management System (CRMS):

1. Violator Pays fine ($158) within 60 days.
   a) No partial payments.
   b) No payments accepted after 60 days.
   c) Accept various payment types.
   d) Store payment date, time, type, amount and source. (Ex. 6/1/2014 at 1:00pm using Visa for$ 158 via cashiering portal login.)

2. Violator requests hearing within 60 days. (See **Magistrate Portal** section below for details.)

3. Violator transfers liability
   a) Store affidavit in PDF format and in color
   b) If transfer is accepted then
      i. Close current NOV, send letter to original named violator
      ii. Issue new NOV to transferee violator
   c) If denied then generate denial letter stating reason.

4. Violator takes no action within 60 days
   a) Close the NOV and send violation to second review queue. City will review and authorize the issuance of the UTC. The system will then generate a UTC using an assigned Broward County Clerk of Court citation number.
   b) Transfer UTC information to Broward County Court.
   c) The system should track the pool of Broward County Court citation numbers and auto request additional numbers when running low.

Overview of Magistrate Portal:

1. Go to web portal and login.
2. Splash Page with Microsoft ribbon like options.
3. NOV Search
   a) Search for NOV by full entries, partial entries and wild cards.
      i. NOV Number (manual or scanned in)
      ii. Name (Company Name, Last Name, First Name)
      iii. Auto Tag (Tag #, State)
4. Display NOV
   a) Display Main Screen
      i. Owner info
      ii. Violation Details
      iii. Vehicle Details
   b) Options
      i. Audit History
      ii. (Re)Schedule Hearing
      iii. Financial History
      iv. Print Options
      v. Notes
      vi. Images
      vii. Videos
      viii. Evidence
         (1) Notices
         (2) General correspondence
         (3) Violator Evidence
         (4) Transfer of Liability
            (a) Affidavit Image
            (b) Affidavit (accepted or rejected)
            (c) Letter of acceptance or rejection

(d) NOV transfer link
ix. Upload Documents (JPEG, TIFF)
x. Download Documents
xi. Adjudication
(1) Hearing Schedule
(2) Hearing History
(3) Enter a Hearing
xii. Notes
xiii. Print Options
xiv. Show Options
(1) Images
(2) Video

5. Hearing Process
   a) Continuance
      i. Reason
      ii. New Date
      iii. Delete canceled hearing date from schedule
      iv. Mail new hearing date to violator
   b) Disposition
      i. In Violation (must show electronic signature)
      ii. Not In Violation (must show electronic signature)
   c) Reviewer
   d) Reason – drop down box
   e) Court Cost – drop down box
   f) Due Date
   g) Save & Print
   h) Save & Mail
6. Reports
   a) Hearing schedule Report with date range in a pop-up that may be printed.
   b) Dismissal Summary Report with optional groupings
      i. Date
      ii. Status
         (1) Dismissed – Admin
         (2) Dismissed – Transferred
         (3) Dismissed – Not in Violation
      iii. Reason
         (1) Other
         (2) Affidavit
         (3) Hearing adjudication
      iv. Quantity in each grouping
      v. Total of fines dismissed in each grouping
      vi. Ad hoc reporting suite
7. Settings

1.4.5 Violation Processing

1) Proposer's violation processing system shall allow the City a detailed view into all of the information related to the program.

2) All access to the violation processing system for the purpose of pre-processing evidence, police authorization, notice printing, payments tracking, and generation of court evidence packages shall be Internet enabled and shall be available 24/7 for authorized users.

3) The violation processing system shall provide the following functions:

   a) Web-enabled access and operation;
   b) Secure user log-in and access;
   c) Automatic presentation of images and data captured by the camera system onto review PC's;
   d) Easy review of violation evidence and both the Notice of Violation and Uniform Traffic Citation stages;
   e) Ability to both "play" full motion video and view multiple scene and plate images;
   f) Ability to view each image as a full screen enlargement with a single click;
   g) Ability to view all original images;
   h) Ability to view traffic signal and legible license tag in a single image, as required by law.
   i) Ability to "crop" a license plate image area from the optimal license plate image in the multiple-image license plate set to establish vehicle ID, and subsequently print the cropped plate area image to the notice;
   j) Ability to "accept" or "reject" violation sets and provide reasons for decisions, if an officer deems it necessary;
   k) Ability to automatically generate printed violation notices of violation;
   l) Ability to store and archive all processed violation evidence into a secured database;
   m) 24/7 ability to access any stored violation image from the system's database subject to agreed archive rules;
   n) 24/7 ability to request and immediately view Court Evidence Package image sequences displayed as video or as individual high resolution still shots, or send images to print locally;
   o) 24/7 ability to immediately request, view and print both standard and user-defined reports;
   p) Secured Access Control and automatically generated Electronic Audit Trails; and
   q) Encryption and decryption management.

4) Proposer's system shall be capable of:

   a) Preparing and mailing Notices of Violation for all chargeable violations.
   b) Issuing Uniform Traffic Citations to violators.

c) Facilitating two reviews by the City: one to authorize the issuance of a Notice of Violation, and one to authorize the issuance of a Uniform Traffic Citation should a Notice of Violation not be timely paid. The process for the second review (at the time of issuance of the Uniform Traffic Citation) should be the same or substantially similar to the initial review procedure, and the process should permit the electronic signature on the Uniform Traffic Citation to be from an officer different than the officer who may have authorized the initial Notice of Violation.

5) The review and issuance process must comply with the statutory deadlines for issuance of Notices of Violation and Uniform Traffic Citations. Potential violations shall be placed in the queue for Notice of Violation review by the City within five (5) business days of the violation. Statutory deadlines for the issuance of the Notices of Violation and Uniform Traffic Citations must be complied with at all times and Proposer must be able to accommodate its schedule for turnaround times to compensate for weekends and holidays. Notices of Violations for which registered owner data is available shall be issued within five (5) business days after police review of the incident. The violation shall be placed in the second review queue for Uniform Traffic Citation review within five (5) business days after expiration of the time to pay (65 days from the date of issuance). Uniform Traffic Citations shall be issued within five (5) business days after police authorization. Proposer will prepare the Notices of Violations and Uniform Traffic Citations using forms approved by the State of Florida, and shall mail such Notices of Violation and Uniform Traffic Citations within the timeframes and pursuant to the methods required by Florida Law. System shall have the capability to print NOV and UTC notices in a format that will fit in a standard sized return envelope and have the return address appear in the window of the envelope.

6) Proposer shall provide a means for the fines to be paid on-line by credit or debit card and/or integrate with the City's existing credit card provider. Proposer shall identify any fees it charges to payers who use credit or debit cards to pay for violations.

7) Proposer shall provide documentary evidence admissible in Broward County Court, to prove the mailing of Notices of Violation and Uniform Traffic Citations, and that such complied with the requirements of state law.

1.4.6 Statistical Analysis and Reporting Systems

1) Reporting System shall have the capacity to produce statistical analysis of camera location, operations, recorded data, including but not limited to the following:

   a) Hours of use per camera by operational site;
   b) Results achieved by each camera by site;
   c) Offenses recorded by each camera by site;
   d) Traffic counts by location, lane, date and hour, and time period (i.e. AM/PM peak periods).
   e) Ability to generate ad-hoc (user defined) reports on all data

2) Reporting System shall be capable of immediately generating operations reports 24/7 including:

   a) Number of violations recorded;
   b) Number of violations where notices were not issued;
   c) Number of notices prepared and mailed;
   d) Status of notices issued (outstanding, canceled, reissued and so forth).
   e) Number of notices appealed by registered vehicle owners/number of cases upheld.
   f) Confirmation that Notice of Violations were issued.
   g) Confirmation that Uniform Traffic Citations were issued.

3) The Reporting System shall also supply statistical reports of camera performance/operation that shall include the following:

   a) Camera equipment hours of service and hours out-of-service;
   b) Number and description of camera or other equipment malfunctions by camera ID, location, date, time, etc.

4) The Reporting System shall be capable of providing Violation and Traffic Statistics as follows:

   a) Real-time traffic volume and vehicle counts; and
   b) Real-time violation graphs and chart by:
      i. Location
      ii. Individual lane;
      iii. Time of day; and
      iv. Day of week.

5) The Reporting System shall be capable of analyzing the results obtained from each camera to show the prosecutable image rate (i.e., the number of notices issued compared to the number of infractions captured)

6) The Reporting System shall generate a monthly report which shall indicate the following:

   a) The number of events detected, notices/violations issued and prosecutable image rate by location and in total/system wide;
   b) The total number of violations that occurred, by location, and percentage of total vehicle traffic by lane and location;
   c) The total number and percentage of rejected images by reason; and,
   d) Information on any technical issues with equipment, including periods of time the equipment was not operational.

7) The Reporting System shall provide a monthly payment detail report to include the following:

1. Camera Location and/or Camera/Site Number
2. Total Violations Issued
3. Total Violations still in the Workflow
4. Total Violations Dismissed
5. Number of UTC issued
6. Violation Number
7. Violation Date
8. Payment Method for Paid Violations
9. Paid Date
10. Paid Amount
11. Payment Number
12. Violation Name
13. Violation Number
14. Ability to generate ad-hoc reports and queries
15. Ability to export all reports to Excel or similar format.

8) The Reporting System shall be able to provide all documentation required to meet FDOT and Court reporting requirements.

1.4.7 Image Transmission Security and Data Storage

1) The system's authentication procedures shall ensure that only authorized personnel gain access to sensitive data. Proposer must provide for image and data security that shall prevent unauthorized persons from accessing the camera images and databases and tampering with images (explain methodology in detail) Documentation of such security measures may be required as evidence at trial.

2) Encryption and unique image identifiers shall ensure the integrity of data captured. Full audit tracking shall allow specified users to gain immediate access to the history of any record in the system.

3) The system shall allow pre-recording to be triggered so that images preceding a significant event are captured and stored.

4) The system shall use efficient storage techniques that use intelligently steered multiple buffers that store only necessary images, eliminating the need for extensive capacity.

5) The system shall also have the option to actively manage storage and optimize performance by automatically erasing all captured images after a specified time.

6) The system shall provide an evidence package for any contested violations. The package shall consist of:

   e) All issued and disputed notices to the party;
   f) A violation history report;

g) A correspondence file containing and any all correspondence sent and received in relation to the violation;
h) Photographs and video of the incident;
i) Photograph of the signage at the approach;
j) A payment history;
k) Proof of mailing of Notice of Violation and Uniform traffic Citations; and
l) Notice of Intent to Rely on Business Records, prepared with all case data information contained therein, for signature of City Attorney. Such document shall be prepared in compliance with the Florida Rules of Court and Florida Statute, as may be amended from time to time.

7) System will maintain a proper chain of evidence that meets the needs of City, the court functions, and the requirements of Florida law.

8) Proposer shall provide a qualified expert witness who is knowledgeable on the theory, security, operation and functional capabilities of the red light camera hardware and software, to testify, in court, as part of the maintenance and support agreement.

1.4.8 Maintenance, Support and Training

1) All maintenance of camera, video, sensors, computer and related equipment shall be included in the maintenance agreement.

2) Maintenance plan shall address repairs or replacement of any inoperable equipment within 72 hours of detection by the Proposer or notification by the City. Absent a force majeure incident (such as a hurricane), any delay beyond the 72 hours will require a rebate or reduction in payment by the City for the period of time the camera is inoperable beyond the 72 hours.

3) Proposer must provide ongoing training support for the hardware and software.

4) Provision of hands-on training as necessary to personnel as required by the City.

5) Proposer shall furnish training materials.

6) Proposer shall actively keep itself up to date on legal decisions relating to red light camera enforcement throughout the state, and provide timely information to the City on court orders about which it becomes aware.

7) Proposer must have a standard maintenance and inspection plan.

1.5 HARDWARE SPECIFICATIONS

Please note that if and wherever in the specifications a brand name, make, name of manufacturer, trade name, or vendor catalog number is mentioned, it is for the purpose of establishing a grade or quality of material only. Since the City does not wish to rule out

other competition and equal brands or makes, the phrase "OR EQUAL" is added. However, if a product other than that specified is bid, Bidders shall indicate on their proposal and clearly state the proposed substitution and deviation. It is the vendor's responsibility to provide any necessary documentation and samples within their bid submittal to prove that the product is equal to that specified. The City retains the right to determine if the proposed brand shall be considered as an approved equivalent or not.

All proposers are advised that at the present time Broward County will not permit any equipment to be tied in or connected to its signalization box. A proposer may be able to do so in the future upon the payment of fees yet to be established by Broward County. The proposer shall be responsible for the payment of all fees should it elect to pursue these connections with Broward County.

Proposer shall provide an intersection design and installation plans for review and approval by the City, Broward County Traffic Engineering and Florida Department of Transportation if applicable. Proposer is responsible for processing all applications with government entities whose approvals are required for installation, including without limitation payment of any associated fees.

1.5.1 Server Infrastructure

Requirements:

a. Meta data storage in Random Database Management System (RDBMS).
b. Ability to add license plates and associated metadata to the existing internal or external SQL database to enable automatic cross-referencing.
c. Operate on any generic server and hardware infrastructure.
d. Interface with outside agencies:
    i. Broward County Courts
    ii. DHSMV / DMV
    iii. FDLE
    iv. NCIC
    v. Lock Box

Equipment:

Cisco Unified Computing format using Flex pod technology in a Configure-to-order Enclosure

Required Computing platform: Cisco Unified Computing platform B- Series Blade servers using Flexpod configuration in Configure-to-order Enclosure and all associated licensing and SmartNet utilizing Windows Server 2012. Any requirements for Networking (routers, switching and POE ports) should be completed on Cisco Catalyst 2960x at 1 gig at access layer and Cisco Catalyst 4500x with

All hardware requirements should be included in the proposal with detail specifications, part numbers, and hardware counts. The solution to include computing, storage, networking, and three years of Cisco UCSS in deliverable racked enclosure.

Vendor is to provide and ensure:

a. All necessary hardware, software and camera feeds ready and available to use prior to project start.
b. The vendor will provide MS SQL server environment to create database for CRMS software.
c. The system will be building a security model based on Microsoft SSO.

1.5.2 Storage Equipment

NetAPP storage solution FAS8080 EX with OnTAP Edge version 8.3

Requirements:

a. Large block storage solution for 30 days for non-violations
b. Access to data base where assign actions (via a code) can be added to each license plate so that predefined instructions or actions will be followed on identification.
c. Encryption and unique image identifiers
d. Full audit tracking allowing users to gain access to record history.
e. Automatic erases of all captured images after a specified time.
f. Data stored in MS-SQL database
g. Provide data security to prevent data loss via interfaces to NCIC, FDLE, or any other crime database accessed through their proposed solution.
h. 3-year warranty
i. All data from NCIC and FDLE shall be managed, stored, and properly partitioned to meet their certification standards.
    i. 78 cameras originally feeding 24 frames per second or 1.2 MB/Sec, which equates to 93MB/s
    ii. Retention timeframe: 30 days except for incidents (red light violations) those are kept for 1 year
    iii. The Connectivity will be direct attach, via SAS and or iSCSI/FC.

Equipment:

NetAPP storage solution FAS8080 EX with OnTAP Edge version 8.3

Block-based storage solution based on:

-Dual Controllers

-Two dual port 10GbE Adapters for Fiber Channel or better Connectivity 10TB usable capacity based on 900GB 15K Drives 135TB usable capacity based on 4TB 7.2K Drives

Service Processor Inform OS Management Suite with Thin Provisioning Reporting Suite
NetApp Education Credits for two 3-day Class

Installation and integration services to be provided by the vendor.

-3 years 24x7 4-hour Proactive Care Warranty

1.5.3 Field Equipment (Cameras/Poles)

Requirements:

a. Provide sufficient cameras (outdoor, day/night) to the eight (8) identified intersections with High Definite (HD) video and sufficient resolution to easily identify any car, make and model, and license plate. Site survey will be required.
   i. The cameras will operation 24 hours per day for a full year with a reliability rate of 99.6%
   ii. Design must incorporate sun angle considerations to preclude reduced visibility due to direct sun light.
   iii. Output integration (protocol and bandwidth) with 3rd party systems is required
   iv. Active directory integration is required
   v. A video wall is required for integration
   vi. Radio (wireless) output shall be encrypted
   vii. One year warranty on all electronic devices, except with force majeure and lightning strike.
   viii. No facial recognition required.
   ix. Flash lights for capturing license plates
b. Provide sufficient cameras (outdoor, day/night) to cover the sixteen (16) intersections identified in paragraph 1.1 with High Definite (HD) video and sufficient resolution to easily identify any car, make and model, with license plate pix only. Site survey will be required.
   i. The cameras will operation 24 hours per day for a full year with a reliability rate of 99.6 %
   ii. Design must incorporate sun angle considerations to preclude reduced visibility due to direct sun light.
   iii. Output integration (protocol and bandwidth) with 3rd party systems is required
   iv. Active directory integration is required
   v. A video wall is required for integration
   vi. Radio (wireless) output shall be encrypted
   vii. Three year warranty on all electronic devices, except with force majeure and lightning strike.
   viii. Three year support plan
c. Provide sufficient break-away poles (of sufficient height) to mount the cameras, where maximized signal strength and throughput (from any specific location) is achieved.

d. Provide (type) Radios with federal/state software or hardware licenses to operate. Radios interference study must show compliance with State regulations
e. Provide sufficient power conditioners, surge protectors to allow for consistent operations
f. Provide sufficient lightning protectors to guard against adverse weather conditions
g. Connected to system by a wireless infrastructure
h. Power will be provided by the city. In cases where there is no power, be prepared to accommodate (cost to city)
i. The City Hall will be the collection point of wireless and video data.
j. Define Video Format, Frame Rate, and Requirement for Standard or High definition video capture.

Equipment:
-12 x IP Outdoor, HD 1080p, DAY/NIGHT, H.264, SD CARD SLOT, IVA INSTALLED, 9-40MM, 24VAC, 60HZ

-58 x IP NTSC license plate camera

-58 x Adapter plate used to attach a DINION capture 5000/7000, an MBE-27, or an MBE-28 to a pole

-35 x 20’ Breakaway Traffic pole Aluminum

-35 x Support Cabinet, surge protectors, lightning suppression, redundant main ACPS, DC module, Li ion battery backup, monitoring probes

-10 x 4.9-6.0 wireless Mesh Radio headend 3100

-35 x 4.9-6.0 Wireless Mesh Radio remote 1200

-3 year Maintenance, Support and Calibration plan with 9 to 5 next business day service level agreement.

1.6 SOFTWARE PROFESSIONAL SERVICES

1.6.1 Red Light/LPR System Front-end

Scope of the Red-Light/LPR front-end system:

1. To install and set-up the Software components
2. To integrate software with City’s Active Directory
3. To configure and set-up Red Light Camera Violation detection and capture
4. To configure identification of make and model of vehicles
5. To tune flash lights for capturing license plates

6. To develop and integrate software application to identify violator information from Florida Department of Highway Safety and Motor Vehicle online database.
7. To integrate and provide information required for CRMS NOV generation such as reviewer name/ID, license plate number, violator name and address, violation evidence location for video & image.
8. To develop a stolen vehicle or vehicle of interest alert system
    a. Search & Collect stolen vehicle information from FDLE, NCIC database (Via a file provided by Police Department or direct API)
    b. An interface for managing vehicle of interest – adding number plate for monitoring, deleting number plate from monitoring
    c. A push alert interface accessible by Police Officers in their Laptop when connected to the City's IT network
9. Documentation & Knowledge Transfer
10. Project Management
        a. The vendor is responsible for acquiring the appropriate access / certifications / licensing / approvals to access License Plate Owner Data from DHSMV, Stolen Vehicle information from FDLE, NCIC and for agencies to receive data produced.
            i. Download pre-requisite license keys and software through vendor site prior to the project start date
            ii. Provide access to appropriate City personnel during the detailed SOW definition phase to ascertain and develop the specific functional requirements of the system. This includes providing detailed specifications of the two required external interfaces.

1.6.2 Red-Light back-end system (Citation Processing)

Scope of the Red-Light back-end system is to develop a workflow from the time a Notice of Violation (NOV) is produced thru disposition of the NOV such as:

- To enable the City of Pembroke Pines to process and manage the workflow from NOV issuance through final disposition.
- To create a User Violator Portal for NOV payment
- To create a Magistrate Portal to administer violation hearings
- To create a Cashiering Portal to record payments that will integrate with the City's cash receipts system.
- To provide methodology to administer the System and Security
- To create a reporting process for current data entry
- To create reporting views and reports for standard analysis

1.7 TECHNICAL SUPPORT

a. Online and telephone technical support for both hardware and software.
- Systems and application support

- Database and integration (interfaces for NICIC, FDLE, Florida DMV support

b. On-location/site technical support for cameras,
c. Upgrades and Enhancements for a period of 3 years meaning any all new versions, improvements, modifications, upgrades, updates fixes and additions to software that proposer makes available to customer.

1.8 CITY'S RESPONSIBILITITES

d. The City will provide a technical and systems operator as a point of contact for integrating with internal IT system; this person will have attended formal training courses relevant to the project. This person will also be responsible to build a team to maintain the system in the future.
    i. Assign staff to work with vendor personnel for implementation and maintenance of proposed software, once the project is completed.
    ii. If needed, provide vendor's consultant with remote access for connectivity to machines prior to engagement start.
e. The City will own and manage the after knowledge transfer and training
f. Provide a Project Manager to serve as the single point of contact for all request, agreements, and project work. This person will provide access to and assign appropriate customer resources (whether network, database, system, or business domain expert) necessary to complete project tasks.
g. Will review all tasks on time, especially when tests are included.
h. Ensure that unless otherwise notified, all services will continue once they have started until completion of the project.

1.9 PROPOSAL REQUIREMENTS

The following documents will need to be completed, scanned and submitted through www.bidsync.com as part of the bidder's submittal. The proposer interested in responding to this solicitation must provide the information requested below. Submittals that do not respond completely too all requirements specified herein may be considered non-responsive and eliminated from the process.

All proposals shall address and be tabbed/indexed as outlined below:

Title Page:

List the following:

Subject: **RFP # AD-14-10 "Red Light Camera Enforcement & License Plate Recognition Monitoring System"**

1. Date
2. Name of the Firm
3. Contact Person (including title) authorized to represent your firm
4. Telephone Number

5. Email Address

Tab 1 - Table of Contents:

Include a clear identification of the material included in the proposal by tab number and page number.

Tab 2 - Letter of Interest:

Limit to two (2) pages.

1. Attach a letter of interest that explains your firm's interest in working on this project, a positive commitment to perform the required work and a description of the firm including:
    a. Include the size, range of activities, financial history, strength, stability, experience, honors, awards, recognitions, etc.
    b. Summary of abilities and experience of the firms' professional personnel (More detail to be provided in **Tab 3 - Experience and Ability**)
    c. Summary of past performance of the firm on similar projects (More detail to be provided in **Tab 4 - Previous Experience**)
    d. Recent, current, and projected workload of the firm, and availability and access to the firms' top level management personnel.

Tab 3 - Experience and Ability (25 points):

The relative experience and qualification of each applicant's proposed team, with respect to the project scope, will be judged and a relative rating assigned. This parameter expresses the general and specific project-related capability of the in-house staff and indicates the adequate depth and abilities of the organization which it can draw upon as needed. This will include management, technical, and support staff. Major consideration will be given to the successful completion of previous projects comparable in design, scope, and complexity.

1. Describe the specialized experience and technical competence of the firm or persons with respect to working similar projects. Please include the capability of carrying out all aspects of required activities.
2. The firm must provide information on their proximity to and familiarity with the area in which the project is located.
3. Please describe the past record of performance of the firm or person with respect to accessibility to clients, ability to meet schedules, communication and coordination skills
4. Identify the contact person and supervisory personnel who will work on the various projects, including the relative experience of all professionals proposed for use on the team.
5. Provide resume(s) of key persons to be assigned to the project with emphasis on their experience with similar work.

6. Provide resume(s) of the on-site staff to be assigned to the project with emphasis on their experience with similar work.
7. Resumes should list qualifications, including education, experience, honors and awards received, and professional associations of which the firm and/or its personnel are members.
8. Explain the ability and experience of the field staff with specific attention to project related experience.

Tab 4 - Previous Experience (20 points):

Provide specific examples of similar contracts delivered by the proposed team members. Provide details on related projects (preferably where the team was the same). References should be from the last five years and should be capable of explaining and confirming your firm's capacity to successfully complete the scope of work outlined herein. As part of the proposal evaluation process, the City may conduct an investigation of references, including a record check or consumer affairs complaints. Proposers' submission of a proposal constitutes acknowledgment of the process and consent to investigate. The City is the sole judge in determining Proposers qualifications. Details should include the following:

1. Attachment L: References Form
2. List of ongoing contracts/projects with their current status and projected termination dates

Tab 5 - Firm's Understanding and Approach to the Work/Technical Proposal (25 points):

The understanding that the applicant and consultants demonstrate as to the requirements and needs of the project, including an evaluation of the thoroughness demonstrated in analyzing and investigating the scope of the project.

1. Provide a narrative statement demonstrating an understanding of the overall intent of this solicitation, as well as the methods used to complete assigned tasks.
2. Please clearly describe all aspects of the project proposed.
3. Include details of your approach and work plans.
4. Identify any issues or concerns of significance that may be appropriate.
5. A brief statement must be included which explains why your proposal would be the most effective and beneficial to the City of Pembroke Pines.

Tab 5.1 - Technical Capabilities

A. List and describe the types of equipment, including dimensions, of all major components comprising the system (e.g., cameras, flash or lighting units, cabinets (including generally what the cabinets contain). The list must include the signage required by Florida Statute. A maximum of two labeled photos of each piece of equipment shall be included.

B. Explain the benefits and capabilities of the Camera System and why your company's System is the best solution for the City. Does it detect more actual violations? Does it capture clearer images? Does it convert more actual violations into usable/enforceable images? Is it aesthetically consistent with other structures at the intersections? Can it be viewed in real time by the Police Department and other city officials, such as to investigate crimes or monitor locations in the City during emergencies? Avoid comparing your system to other companies' systems.

C. How does the System capture the red light signal and the vehicles violating the red traffic signal? Proposers may propose more than one detection method. However, Proposer must identify which method is the primary method to be used in the Program. Explain each detection method that can be used by the Detector System, including the benefits and limitations of each. Note that at the current time, the vendor will not be permitted by Broward County to connect directly to signalization equipment; however, such may be permitted in the future.

D. Explain the technology used by the equipment to capture changes in signal phases. Included in the explanation shall be accuracy of the detection of signal phase changes, and if some form of optical sensor is used, how such sensor is affected by inclement weather such as fog, rain and wind. Note that at the current time, the vendor will not be permitted by Broward County to connect directly to signalization equipment; however, such may be permitted in the future.

E. How your System transmits the data to your remote office facility for processing? Does the System use wireless technology to transmit data from the intersections? If yes, please explain the details of the technology including encryption capabilities to prevent tampering with the system and unauthorized access to pictures. If no, explain the technology used. Does the System have redundancy for transmission of the data?

F. How is the System powered at an intersection? Does the System field equipment have redundancy in the event that the primary power source fails? Is there a time limitation under which the system field equipment can operate under the redundant system? If yes, how long can the system operate on the redundant system?

G. State the size of the red light camera system enclosure and the normal power draw of the system, including the power usage during the flash phase

H. Can the stand alone System field equipment be hard wired to the County or State of Florida's traffic control systems? If yes, how and how long would it require the System field equipment to be out of service at a given location? What are the operational benefits, if any, to a hard wired system? Note that at

the current time, the vendor will not be permitted by Broward County to connect directly to signalization equipment; however, such may be permitted in the future.

I. How does the camera capture multiple, concurrent, and/or simultaneous violations?

J. How does the camera compensate for the effects of inclement weather, license plate covers, reflective material on license plates, and reflective glare? Two pictures of each situation shall be included.

K. List the data that is captured on both the still camera picture and on the video. Does the system at any time photograph or image the driver of the vehicle?

L. Describe periodic maintenance, inspection and repair plans, including frequency, inspection checklist, and response time for repairs. Provide a copy of each plan.

M. Please provide a Disaster recovery plan.

N. Explain the procedures, requirements, and methodology for the installation of the camera field equipment. This shall include the types of construction work required, design drawings, installation requirements, permits, process for obtaining easements, and typical timeframes for installation from issuance of a Notice to Proceed.

O. Provide information on the signage used at intersections to advise motorists of the Cameras. Include size, type of materials used (including if post is a breakaway post), wording (including wording for right turn on red). Provide two sample pictures

P. Average percentage of time Detector System is operational on an annual basis. Factors such as repairs and maintenance are to be considered.

Q. Confirm ability for system to complete real-time FDLE tag look-up and supply owner information to process UTC.

R. Are the proposed equipment (cameras and poles, etc.) been approved by the State of Florida through the certification process? If yes, provide copies of all documentation verifying State of Florida Certifications. If no, please describe your plan and timeline for obtaining all necessary certifications from the State of Florida.

NOTE: SHOULD THE CITY AWARD THE CONTRACT TO A VENDOR WHOSE DESIGN AND EQUIPMENT DOES NOT HAVE ALL REQUIRED CERTIFICATIONS FROM THE STATE OF

FLORIDA AT THE TIME OF SUBMISSION OF THE PROPOSAL, THE AWARD OF THE CONTRACT WILL BE CONTINGENT ON ALL REQUIRED CERTIFICATIONS OF ALL DESIGN AND EQUIPMENT FROM THE STATE OF FLORIDA BEING RECEIVED WITHIN THE TIMEFRAME PROVIDED BY A VENDOR. THE CITY RESERVES THE RIGHT TO RESCIND AN AWARD OF CONTRACT, AND MAKE AN ALTERNATE AWARD TO ANOTHER RESPONSIVE VENDOR SHOULD ALL REQUIRED CERTIFICATIONS FOR DESIGN AND EQUIPMENT FOR RLCs NOT BE OBTAINED BY THE VENDOR FROM THE STATE OF FLORIDA WITHIN THE TIMEFRAME PROVIDED BY THE VENDOR.

S. Are the proposed cameras capable of providing both Red Light Enforcement and License Plate Recognition or will separate cameras be provided to provide each service (Red Light Enforcement and License Plate Recognition)?

T. Define Video Format, Frame Rate and requirement for Standard or High definition video capture.

U. Provide general details on the workstation requirements for Police processing workstation(s).
   i. Is the viewer Windows XP/7 compatible?
   ii. Client or Browser based?
   iii. Are special printers/devices required to ensure image quality?
   iv. Will the UTC be formatted to allow for use of automated mail folding systems?
   v. Is there an option to embed a United State Postal Service Indicia to ensure best pricing for bulk mailing?

V. Provide information on site surveys, validation of line of site and other limitations that have been determined along with a complete build of materials to ensure wireless data transfer feasibility for each proposed intersection

Tab 5.2 - Camera Database System

A. Explain the process for storage and retrieval of violation and citation documentation. Including how long a violation is made available to be viewed by the violator, the City, and the Court.

B. The Proposer must acknowledge that it is knowledgeable as to Florida statutory and regulatory requirements and that the vendor's business practices comply with such,

C. Describe your plan and practices to ensure that the Camera is maintained up to date and reviewed for periodic or required upgrades.

D. Explain the reliability of photographic imagery and its use at hearings ad court. Factors such as illegible license plates, incorrect data such as speed, time of day, etc. should be considered.

E. Explain how the Camera System communicates with the Broward County Traffic Court database system.

F. Explain the system, including listing of hardware and software to be used. Identify the software language and the benefits of using the software language. What is the current capacity for storage?

G. Explain the types of standardized reports the System can provide, including identifying any required by the solicitation that cannot be provided. Identify if customized reports can be provided, any limitations on customized reports, and the timeframe for customizing reports. Identify all web based reports that are available to the City online and explain if customized reporting can be performed by the City online. Provide three copies of existing standardized reports that best reflect the report information identified in the solicitation.

H. Is the System capable of online reporting in real time? If yes, explain how this will work. If no, explain how frequently the information is captured or entered into the System.

I. Explain the methods and protocols used to back-up the System's data and the encryption technology used to protect the System.

J. Describe the process a person will follow to access a copy of their violation information, including average loading times to view the still pictures and video. Provide the timeline during which the information will be available on-line for viewing. Provide three screen captures of the System's screen that reflect the on-line access process

Tab 5.3 - Diagrams

A. Provide the city with network diagram (including Wireless networks) of all components related to transmission and captured vehicle information back to the primary storage solution.
B. Please provide a diagram of workflow process from Video Capture all the way through citations process with Broward County Courts.
C. Please provide diagram and workflow process for LPR from initial recognition of vehicle of interest to real-time alerts to City personnel.
D. Any additional diagrams that may be necessary.

Tab 5.4 - Maintenance, Support and Training

A. Describe the proposed standard process for how often the cameras systems will be visited in-person for maintenance and inspection. Explain what occurs during a maintenance and inspection visit
B. Describe the contingency plan for repairing and returning the camera systems to operational status following a significant weather event, such as a windstorm. If you service clients within a 100 mile radius of the City, explain the allocation of resources and the plan in the event of a widespread outage of camera systems
C. The proposal shall include a description of on-site visits at the implementation stage, and regular meetings with City personnel on operational matters relating to the program.
D. Provide a detailed Service Level Agreement matrix for system maintenance, systems repairs and programmatic bug fixes.
E. Define Support and Maintenance agreements to include (Cameras, Poles, and wireless network). Service Level Agreements for outages and repairs (example: Damage non-working intersections eta for onsite repair 4 hours)
F. Provide any other necessary agreements for this project.
G. Provide a software upgrade path as part of its annual maintenance agreement to ensure that its solution meets all current requirements for the state, county and any changes relates to core operating systems changes

Tab 5.5 - City Responsibilities

A. Proposer shall describe in detail the extent of the City staff's involvement in the project. Provide a list of City requirements.
B. In addition, please provide a list of any assumptions regarding the existing system, environment, laws, regulations, fees, internal requirements, external requirements pre-installation and post-installation responsibilities, future changes in regulations, etc.

Tab 6 – Project Cost (25 points):

1. Attachment A: Proposal Form
   a. Attached is proposal form (Attachment A) where the vendor will complete the proposal checklist and enter their contact information. Proposal form shall be signed by the contact person authorized to represent the contractor. This form must be completed, scanned and submitted through www.bidsync.com as part of the bidder's submittal. The vendor must provide their pricing through the designated lines items listed on the BidSync website.
   b. Proposals must contain a manual signature of the authorized representative of the Proposer. Proposals shall contain an acknowledgment of receipt of all Addenda. The address and telephone number for communications regarding the Proposal must be shown.
   c. Proposals by corporations must be executed in the corporate name by the President or other corporate officer accompanied by evidence of authority to sign.

The corporate address and state of incorporation must be shown below the signature.

d. Proposals by partnerships must be executed in the partnership name and signed by a partner whose title must appear under the signature and the official address of the partnership must be shown below the signature.

2. Proposer shall include a detailed line item list of:
   a. All proposed hardware with quantities and expected useful life.
   b. All installation costs, per item or location.
   c. Any travel, consulting fees, etc.
   d. All proposed software solutions required modules along with additional options.
   e. Annual maintenance cost for hardware
   f. Annual maintenance and support cost for software
   g. Cost for optional expansion for future needs of the program including any other items that the City would have to consider during expansion (i.e. – Additional storage space, etc.)
   h. If applicable, any additional costs that the City would have to expend to other vendors/agencies to meet
   i. Permitting Fees.
   j. A list of assumptions that are included in the proposed cost along with a list of any additional costs that are not included in the proposal.

3. Provide a solution delivery schedule with key dates defined.

Tab 7 – Other Completed Documents (5 points for Vendor Preference - Local/VOSB):

1. Attachment B: Vendor Information Form and a W-9
2. Attachment C: Non-Collusive Affidavit
3. Attachment D: Sworn Statement on Public Entity Crimes Form
4. Attachment E: Local Vendor Preference Certification
   a. If claiming Local Pembroke Pines Vendor Preference, business must attach a current business tax receipt from the City of Pembroke Pines
   b. If claiming Local Broward County Vendor Preference, business must attach a current business tax receipt from Broward County or the city within Broward County where the business resides.
   c. The Local Vendor Preference Certification form must be completed by/for the proposer; the proposer **WILL NOT** qualify for Local Vendor Preference based on their sub-contractors' qualifications.
5. Attachment F: Veteran Owned Small Business Preference Certification
   a. If claiming Veteran Owned Small Business Preference Certification, business must attach the "Determination Letter" from the United States Department of Veteran Affairs Center for Verification and Evaluation notifying the business that they have been approved as a Veteran Owned Small Business (VOSB).
   b. The Veteran Owned Small Business Preference Certification form must be completed by/for the proposer; the proposer **WILL NOT** qualify for

Veteran Owned Small Business Preference based on their sub-contractors' qualifications.

6. Attachment G: Equal Benefits Certification Form
7. Attachment H: Proposer's Completed Qualification Statement

Tab 8 - Business Structure, Licenses and Professional Registration Certificates:

1. Copies of city, county, and state professional licenses and business tax receipts.
2. If the firm offering services is a corporation, or joint venture, it must be properly chartered with the Department of State to operate in Florida and provide a copy of the firm's current Florida Corporate Charter.
3. A reproduction of the firm's current professional registration certificate(s) is required for the services offered and must be in the name of the firm offering said services (architecture, engineering, general contractor or other certification required).
4. Firms must be properly registered at the time of application to practice their profession in the State of Florida and with the appropriate State Board governing the services offered.

Tab 9 - Additional Information:

Please provide any additional information that you deem necessary to complete your proposal in this section, if it has not been requested in another section.

1.10 EVALUATION OF PROPOSALS & PROCESS OF SELECTION

A. Staff will evaluate all responsive proposals received from proposers who meet or exceed the bid requirements contained in the RFP. Evaluations shall be based upon the information and references contained in the proposals as submitted. **As such, the Proposal should be as comprehensive as possible; clearly describing the details of services that the Proposer intends to provide.**

B. The City will convene an Evaluation Committee and brief its members on the scope of the project and the services required. The Evaluation Committee will evaluate proposals based on the following criteria

Criteria	**Points**
Experience and Ability	25 points
Previous Experience	20 points
Firm's Understanding and Approach to the Work/ Technical Proposal	25 points
Project Cost	25 points
Local Vendor Preference/ Veteran Owned Small Business Preference*	5 points
Total Points	**100 points**

**Please note that the Local Vendor Preference is used to evaluate the submittals received from proposers and are assigned point totals, a preference of five (5) points of the total evaluation point shall be given to the Local Pembroke Pines Vendor(s); a preference of two and a half (2.5) points of the total evaluation point shall be given to the Local Broward County Vendor(s), all other vendors shall receive zero (0) points. Vendors must submit the attached Local Vendor Preference Certification Form in order to qualify for these evaluation points.*

Veteran Owned Small Business (VOSB) is also used to evaluate the submittals received from proposers and are assigned point totals, a preference of two and a half (2.5) points of the total evaluation point shall be given to the Veteran Owned Small Businesses. Vendors must submit the attached Veteran Owned Small Business Preference Certification Form in order to qualify for these evaluation points.

All other vendors shall receive zero (0) points.

C. In the event that there are more than three (3) proposers, the Evaluation Committee shall have the option to short-list the proposers based on the criteria listed above. Then the Evaluation Committee may schedule a second meeting for the firms to make presentations and answer questions of clarification as part of its evaluation. As part of this process, the firms shall have officials of the appropriate management level present and representing the firm. The project manager should be available. The firm shall be prepared to present an overall briefing regarding the manner in which the contractual obligations will be accomplished.

D. The Evaluation Committee will make a recommendation to the City Commission for award of contract. The contract shall be awarded to the most responsive/responsible proposer whose proposal is determined to be the most advantageous to the City taking into consideration the evaluation criteria.

1.11 TENTATIVE SCHEDULE OF EVENTS

Event	**Time &/or Date**
Issuance of Solicitation (Posting Date)	**_____, 2014**
Non-Mandatory Pre-Bid Meeting	**_____, 2015**
Question Due Date	**_____, 2015**
Anticipated Date of Issuance for the Addenda with Questions and Answers	**_____, 2015**
Proposals will be accepted until	**2:00 p.m. on _____, 2015**
Proposals will be opened at	**2:30 p.m. on _____, 2015**
Evaluation of Proposals by the Evaluation Committee	**TBD**
Recommendation of Contractor to City Commission award	**TBD**

1.12 SUBMISSION REQUIREMENTS

Bids/proposals **must be submitted electronically** at www.bidsync.com **on or before 2:00 p.m. on _____, 2015.**

The vendor must provide the necessary information on the BidSync website and upload all of the requested documents listed in the *PROPOSAL REQUIREMENTS* section of this solicitation.

The City recommends for proposers to submit their proposals as soon as they are ready to do so. Please allow ample time to submit your proposals on the BidSync website. Proposals may be modified or withdrawn prior to the deadline for submitting Proposals. BidSync Support is happy to help you with submitting your proposal and to ensure that you are submitting your proposals correctly, but we ask that you contact their support line at 1-800-990-9339 with ample time before the bid closing date and time.

PLEASE DO NOT SUBMIT ANY PROPOSALS VIA MAIL, E-MAIL OR FAX.

SECTION 2 - INSURANCE REQUIREMENTS

The CONTRACTOR shall indemnify and hold harmless the CITY and its officers, employees, agents and instrumentalities from any and all liability, losses or damages, including attorneys' fees and costs of defense, which the CITY or its officers, employees, agents or instrumentalities may incur as a result of claims, demands, suits, causes of actions or proceedings of any kind or nature arising out of, relating to or resulting from the performance of this Agreement by the CONTRACTOR or its employees, agents, servants, partners principals or subcontractors. The CONTRACTOR shall pay all claims and losses in connection therewith and shall investigate and defend all claims, suits or actions of any kind or nature in the name of the CITY, where applicable, including appellate proceedings, and shall pay all costs, judgments, and attorney's fees which may issue thereon. The CONTRACTOR expressly understands and agrees that any insurance protection required by this Agreement or otherwise provided by the CONTRACTOR shall in no way limit the responsibility to indemnify, keep and save harmless and defend the CITY or its officers, employees, agents and instrumentalities as herein provided.

CONTRACTOR shall not commence work under this Agreement until it has obtained all insurance required under this paragraph and such insurance has been approved by the Risk Manager of the CITY nor shall the CONTRACTOR allow any subcontractor to commence work on his subcontract until all similar such insurance required of the subcontractor has been obtained and similarly approved.

CERTIFICATES OF INSURANCE, reflecting evidence of the required insurance, shall be filed with the City's Risk Manager prior to the commencement of this Agreement. Policies shall be issued by companies authorized to do business under the laws of the State of Florida. The insurance company shall be rated no less than "A" as to management, and no less than "Class VI" as to financial strength according to the latest edition of Best's Insurance Guide published by A.M. Best Company.

Policies shall be endorsed to provide the CITY thirty (30) days notice of cancellation, material change or non-renewal of policies required under the contract. If the carrier will not agree to this notification, the CONTRACTOR or its insurance broker shall notify the CITY of any cancellation or reduction in coverage within seven days of receipt of insurer's notification of cancellation or reduction in coverage.

Insurance shall be in force until all obligations required to be fulfilled under the terms of the Agreement are satisfactorily completed as evidenced by the formal acceptance by the CITY. In the event the insurance certificate provided indicates that the insurance shall terminate and lapse during the period of this Agreement, then in that event, the CONTRACTOR shall furnish, at least fifteen (15) days prior to the expiration of the date of such insurance, a renewed certificate of insurance as proof that equal and like coverage for the balance of the period of the Agreement and extension thereunder is in effect. The CONTRACTOR shall not commence nor continue to provide any services pursuant to this Agreement unless all required insurance remains in full force and effect. CONTRACTOR shall be liable to CITY for any lapses in service resulting from a gap in insurance coverage.

The insurance requirements specified in this Agreement are minimum requirements and in no way reduce any liability the CONTRACTOR has assumed in the indemnification/hold harmless section(s) of this Agreement.

2.1 REQUIRED INSURANCE

A. COMMERCIAL GENERAL LIABILITY INSURANCE including, but not limited to: coverage for premises & operations, personal & advertising injury, products & completed operations, Liability assumed under an Insured Contract (including tort liability of another assumed in a business contract), and independent contractors. Coverage must be written on an occurrence basis, with limits of liability no less than:

1. Each Occurrence Limit - $1,000,000
2. Fire Damage Limit (Damage to rented premises) - $100,000
3. Personal & Advertising Injury Limit - $1,000,000
4. General Aggregate Limit - $2,000,000
5. Products & Completed Operations Aggregate Limit - $2,000,000 **(mostly for construction or equipment sold to the CITY)**
6. **Excess policy with a minimum of $4,000,000**

Products & Completed Operations Coverage shall be maintained for two (2) years after the final payment under this contract. (Increase to 10 years for construction projects) (For construction projects also include: Designated Construction Project(s) General Aggregate Limit)

The City of Pembroke Pines must be shown as an additional insured with respect to this coverage. City's Additional Insured status shall extend to any coverage beyond the minimum requirements for limits of liability found herein.

B. WORKERS' COMPENSATION AND EMPLOYERS LIABILITY INSURANCE covering all employees, and/or volunteers of the CONTRACTOR engaged in the performance of the scope of work associated with this Agreement. In the case any work is sublet, the CONTRACTOR shall require the subcontractors similarly to provide Workers Compensation Insurance for all the latter's employees unless such employees are covered by the protection afforded by the CONTRACTOR. Coverage for the CONTRACTOR and his subcontractors shall be in accordance with applicable state and/or federal laws that may apply to Workers' Compensation Insurance with limits of liability no less than:

1. Workers' Compensation : Coverage A – Statutory
2. Employers Liability: Coverage B $500,000 Each Accident
   $500,000 Disease – Policy Limit
   $500,000 Disease – Each Employee

If CONTRACTOR claims to be exempt from this requirement, CONTRACTOR shall provide CITY proof of such exemption along with a written request for CITY to exempt CONTRACTOR, written on CONTRACTOR letterhead.

Coverage shall be included for injuries or claims under the USL&H or Jones Act, when applicable.

C. AUTO LIABILITY INSURANCE covering all owned, leased, hired, non-owned and employee non-owned vehicles used in connection with the performance of work under

this Agreement, with a combined single limit of liability for bodily injury and property damage no less than:

1. Any Auto (Symbol 1)
   Combined Single Limit (Each Accident) - $1,000,000
2. Hired Autos (Symbol 8)
   Combined Single Limit (Each Accident) - $1,000,000
3. Non-Owned Autos (Symbol 9)
   Combined Single Limit (Each Accident) - $1,000,000

If work under this Agreement includes transportation of hazardous materials, policy shall include pollution liability coverage equivalent to that provided by ISO pollution liability-broadened coverage for auto endorsement CA9948 and the Motor Carrier Act endorsement MCS90.

D. **PROFESSIONAL LIABILITY/ERRORS & OMISSIONS INSURANCE,** when applicable, with a limit of liability no less than $5,000,000 per wrongful act. This coverage shall be maintained for a period of no less than three (3) years after final payment of the contract. (Increase to 10 years for construction projects)

E. **ENVIRONMENTAL/POLLUTION LIABILITLY** shall be required with a limit of no less than $1,000,000 per wrongful act whenever work under this Agreement involves potential losses caused by pollution conditions. Coverage shall include: Contractor's completed operations as well as sudden and gradual pollution conditions. If coverage is written on a claims-made basis, coverage shall be maintained for a period of no less than three (3) years after final payment of the contract. **The City of Pembroke Pines must be shown as an additional insured with respect to this coverage.** Furthermore, the CITY'S Additional Insured status shall extend to any coverage beyond the minimum requirements for limits of liability found herein.

F. **CYBER LIABILITY including Network Security and Privacy Liability** when applicable, with a limit of liability no less than $1,000,000 per loss. Coverage shall include liability arising from: theft, dissemination and/or use of confidential information stored or transmitted in electronic form, unauthorized access to, use of, or tampering with computer systems, including hacker attacks or inability of an authorized third party to gain access to your services, including denial of service, and the introduction of a computer virus into, or otherwise causing damage to, a customer's or third person's computer, computer system, network, or similar computer-related property and the data, software and programs thereon. This coverage shall be maintained for a period of no less than three (3) years after final payment of the contract. **The City of Pembroke Pines must be shown as an additional insured with respect to this coverage.** Furthermore, the CITY'S Additional Insured status shall extend to any coverage beyond the minimum requirements for limits of liability found herein.

G. **CRIME COVERAGE** when applicable, shall include employee dishonesty, forgery or alteration, and computer fraud in an amount of no less than $1,000,000 per loss. If Contractor is physically located on the City's premises, a third-party fidelity coverage extension shall apply.

2.2 REQUIRED ENDORSEMENTS

1. The City of Pembroke Pines shall be named as an Additional Insured on each of the General Liability polices required herein
2. Waiver of all Rights of Subrogation against the CITY
3. 30 Day Notice of Cancellation or Non-Renewal to the CITY
4. CONTRACTORs' policies shall be Primary & Non-Contributory
5. All policies shall contain a "severability of interest" or "cross liability" liability clause without obligation for premium payment of the CITY
6. The City of Pembroke Pines shall be named as a Loss Payee on all Property and/or Inland Marine Policies as their interest may appear.

CONTRACTOR shall name the CITY, as an additional insured on each of the General Liability policies required herein and shall hold the CITY, its agents, officers and employees harmless on account of claims for damages to persons, property or premises arising out of the services provided hereunder. Any insurance required of the CONTRACTOR pursuant to this Agreement must also be required by any subcontractor in the same limits and with all requirements as provided herein, including naming the CITY as an additional insured, in any work is subcontracted unless such subcontractor is covered by the protection afforded by the CONTRACTOR and provided proof of such coverage is provided to CITY. The CONTRACTOR and any subcontractors shall maintain such policies during the term of this Agreement.

The CITY reserves the right to require any other additional types of insurance coverage and/or higher limits of liability it deems necessary based on the nature of work being performed under this Contract.

SECTION 3 - GENERAL TERMS & CONDITIONS

3.1 EXAMINATION OF CONTRACT DOCUMENTS

Before submitting a Proposal, each Proposer should (a) consider federal, state and local laws, ordinances, rules and regulations that may in any manner affect cost or performance of the work, (b) study and carefully correlate the Proposer's observations with the Proposal Documents; and (c) notify the Purchasing Manager of all conflicts, errors and discrepancies, if any, in the Proposal Documents.

The Proposer, by and through the submission of a Proposal, agrees that Proposer shall be held responsible for having familiarized themselves with the nature and extent of the work and any local conditions that may affect the work to be done and the services, equipment, materials, parts and labor required.

3.2 CONFLICT OF INSTRUCTIONS

If a conflict exists between the General Conditions and Instructions stated herein and specific conditions and instructions contained in specifications, the specifications shall govern.

3.3 ADDENDA or ADDENDUM

A formal solicitation may require an Addendum to be issued. An addendum in some way may clarify, correct or change the original solicitation (i.e. due date/time, specifications, terms, conditions, line item). Vendors submitting a proposal should check the BidSync website for any addenda issued. Vendors are cautioned not to consider verbal modifications to the solicitation, as the addendum issued through BidSync will be the only official method whereby changes will be made.

3.4 INTERPRETATIONS AND QUESTIONS

If the Proposer is in doubt as to the meaning of any of the Proposal Documents, is of the opinion that the Conditions and Specifications contain errors or contradictions or reflect omissions, or has any question concerning the conditions and specifications, the Proposer shall submit a question for interpretation or clarification. The City requires all questions relating to the solicitation be entered through the **"Ask a Question"** option tab available on the BidSync website. Responses to the questions will be provided online at www.bidsync.com. Such request must be received by the **"Question Due Date"** stated in the solicitation. Questions received after **"Question Due Date"** shall not be answered. Interpretations or clarifications in response to such questions will be issued via BidSync. The issuance of a response via BidSync is considered an Addendum and shall be the only official method whereby such an interpretation or clarification will be made.

BidSync Support is also available to assist proposers with submitting their proposal and to ensure that proposers are submitting their proposals correctly. Proposers should ensure that they contact they BidSync support line at 1-800-990-9339 with ample time before the bid closing date and time.

For all other questions related to this solicitation, please contact the, Purchasing Manager, Christina Sorensen, at purchasing@ppines.com.

3.5 RULES, REGULATIONS, LAWS, ORDINANCES and LICENSES

The awarded contractor shall observe and obey all laws, ordinances, rules, and regulations of the federal, state, and CITY, which may be applicable to the service being provided. The awarded firm shall have or be responsible for obtaining all necessary permits or licenses required, if necessary, in order to provide this service.

Bidder warrants by submittal that prices quoted here are in conformity with the latest federal price guidelines, if any.

3.6 WARRANTIES FOR USAGE

Whenever a bid is sought, seeking a source of supply for a specified time for materials or service, the quantities or usage shown are estimated only. No guarantee or warranty is given or implied by the City as to the total amount that may or may not be purchased from any resulting contracts. These quantities are for bidders information only and will be used for tabulation and presentation of bid.

3.7 BRAND NAMES

If and wherever in the specifications a brand name, make, name of manufacturer, trade name, or vendor catalog number is mentioned, it is for the purpose of establishing a grade or quality of material only. Since the City does not wish to rule out other competition and equal brands or makes, the phrase "OR EQUAL" is added. However, if a product other than that specified is bid, Bidders shall indicate on their proposal and clearly state the proposed substitution and deviation. It is the **vendor's responsibility** to provide any necessary documentation and samples within their bid submittal to prove that the product is equal to that specified. Such samples are to be furnished before the date of bid opening, unless otherwise specified. Additional evidence in the form of documentation and samples may be requested if the proposed brand is other than that specified. The City retains the right to determine if the proposed brand shall be considered as an approved equivalent or not.

3.8 QUALITY

All materials used for the manufacture or construction of any supplies, materials, or equipment covered by this bid shall be new, the latest model, of the best quality, and highest grade workmanship, unless otherwise noted.

3.9 SAMPLES

Samples, when requested, must be furnished before, or at the bid opening, unless otherwise specified, and delivered free of expense to the City and if not used in testing or destroyed, will upon request within thirty (30) days of bid award be returned at the bidder's expense.

3.10 DEVELOPMENT COSTS

Neither the City nor its representatives shall be liable for any expenses incurred in connection with the preparation, submission or presentation of a Bid in response to this Invitation for Bid. All information in the Bid shall be provided at no cost to the City.

3.11 PRICING

Prices should be stated in units of quantity specified in the bidding specifications. In case of discrepancy in computing the amount of the bid, the unit prices quoted will govern.

Bidder warrants by virtue of bidding that prices, terms, and conditions quoted in his bid will be firm for acceptance for a period of ninety (90) days from date of bid opening unless otherwise stated by the City or bidder.

3.12 DELIVERY POINT

All items shall be delivered F.O.B. destination, and delivery cost and charges included in the bid price. Failure to do so may be cause for rejection of bid.

3.13 TAX EXEMPT STATUS

The City is exempt from Florida Sales and Federal Excise taxes on direct purchase of tangible property.

3.14 CONTRACT TIME

By virtue of the submission of the Proposal, Proposer agrees and fully understands that the completion time of the work of the Contract is an essential and material condition of the Contract and that time is of the essence. The Successful Proposer agrees that all work shall be prosecuted regularly, diligently and uninterrupted at such rate of progress as will ensure full completion thereof within the time specified. Failure to complete the work within the time period specified shall be considered a default.

In addition, time will be of the essence for any orders placed as a result of this bid. Purchaser reserves the right to cancel such orders, or part thereof, without obligation if delivery is not made at the time(s) or place(s) specified.

3.15 COPYRIGHT OR PATENT RIGHTS

Bidder warrants that there have been no violations of copyrights or patent rights in manufacturing, producing, or selling other goods shipped or ordered as a result of this bid, and seller agrees to hold the purchaser harmless from any and all liability, loss or expense occasioned by such violation.

3.16 PUBLIC ENTITY CRIMES

"A person or affiliate who has been placed on the convicted vendor list following a conviction for a public entity crime may not submit a bid on a contract to provide any goods or services to a public entity, may not submit a bid on a contract with a public entity for the construction or repair of a public building or public work, may not submit bids on leases of real property to a public entity, may not be awarded or perform work as a contractor, supplier, subcontractor, or consultant under a contract with any public entity, and may not transact business with any public entity in excess of the threshold amount provided in Section 287.017, for CATEGORY TWO for a period of 36 months from the date of being placed on the convicted vendor list."

The Public Entity Crime Affidavit Form, attached to this solicitation, includes documentation that shall be executed by an individual authorized to bind the Proposer. The Proposer further understands and accepts that any contract issued as a result of this solicitation shall be either voidable or subject to immediate termination by the City. In the event there is any misrepresentation or lack of compliance with the mandates of Section 287.133 or Section 287.134, respectively, Florida Statutes. The City in the event in such termination, shall not incur any liability to the Bidder for any goods, services or materials furnished.

3.17 CONFLICT OF INTEREST

The award of any contract hereunder is subject to the provisions of Chapter 112, Florida Statutes. Proposers must disclose with their Proposal the name of any officer, director, partner, proprietor, associate or agent who is also an officer or employee of CITY or any of its agencies. Further, all Proposers must disclose the name of any officer or employee of CITY who owns, directly or indirectly, an interest of five percent (5%) or more in the Proposer 's firm or any of its branches or affiliate companies.

3.18 FACILITIES

The City reserves the right to inspect the Bidder's facilities at any time with prior notice.

3.29 ENVIRONMENTAL REGULATIONS

CITY reserves the right to consider Proposer's history of citations and/or violations of environmental regulations in determining a Proposer's responsibility, and further reserves the right to declare a Proposer not responsible if the history of violations warrant such determination. Proposer shall submit with the Proposal, a complete history of all citations and/or violations, notices and dispositions thereof. The non-submission of any such

documentation shall be deemed to be an affirmation by the Proposer that there are no citations or violations. Proposer shall notify CITY immediately of notice of any citation or violation that Proposer may receive after the Proposal opening date and during the time of performance of any contract awarded to Proposers.

3.20 SIGNATURE REQUIRED

All proposals must be signed with the firm name and by an officer or employee having authority to bind the company or firm by his signature. FAILURE TO PROPERLY SIGN PROPOSAL SHALL INVALIDATE SAME, AND IT MAY NOT BE CONSIDERED FOR AWARD.

The individual executing this Bid on behalf of the Company warrant to the City that the Company is authorized to do business in the State of Florida, is in good standing and that Company possesses all of the required licenses and certificates of competency required by the State of Florida and Broward County to provide the goods or perform the services herein described.

The signed bid shall be considered an offer on the part of the bidder or contractor, which offer shall be deemed accepted upon approval by the City Commission of the City of Pembroke Pines and in case of default on the part of the bidder or contractor after such acceptance, the City of Pembroke Pines may take such action as it deems appropriate including legal action for damages or specific performance.

3.21 MANUFACTURER'S CERTIFICATION

The City of Pembroke Pines reserves the right to request from bidder separate manufacturer certification of all statements made in the proposal.

3.22 MODIFICATION OR WITHDRAWAL OF PROPOSAL

The City recommends for proposers to submit their proposals as soon as they are ready to do so. Please allow ample time to submit your proposals on the BidSync website. Proposals may be modified or withdrawn prior to the deadline for submitting Proposals.

3.23 PUBLIC BID; BID OPENING AND GENERAL EXEMPTIONS

All submittals received by the deadline will be recorded, and will subsequently be publicly opened on the same business day at 2:30 p.m. at the office of the City Clerk, 10100 Pines Boulevard, Pembroke Pines, FL.

All Proposals received from Proposers in response to the solicitation will become the property of CITY and will not be returned to the Proposers. In the event of Contract award, all documentation produced as part of the Contract shall become the exclusive property of CITY. Proposers are requested to identify specifically any information contained in their Proposals which they consider confidential and/or proprietary and which they believe to be exempt from disclosure, citing specifically the applicable exempting law.

Pursuant to Section 119.071 of the Florida Statutes, sealed bids, proposals, or replies received by a Florida public agency shall remain exempt from disclosure until an intended decision is announced or until 30 days from the opening, whichever is earlier.

Therefore, bidders will not be able to procure a copy of their competitor's bids until an intended decision is reached or 30 days has elapsed since the time of the bid opening.

However, pursuant to Section 255.0518 of the Florida Statutes, when opening sealed bids that are received pursuant to a competitive solicitation for **construction or repairs on a public building or public work**, the entity shall:

(a) Open the sealed bids at a public meeting.
(b) Announce at that meeting the name of each bidder and the price submitted in the bid.
(c) Make available upon request the name of each bidder and the price submitted in the bid.

For solicitations that are **not** for **"construction or repairs on a public building or public work"** the City shall not reveal the prices submitted in the bids until an intended decision is announced or until 30 days from the opening, whichever is earlier.

3.24 RESERVATIONS FOR REJECTION AND AWARD

The City of Pembroke Pines reserves the right to accept or reject any and all bids or parts of bids, to waive irregularities and technicalities, and to request rebids. The City also reserves the right to award a contract on such items(s) or service(s) the City deems will best serve its interests. All bids shall be awarded to the most responsive/responsible bidder, provided the (City) may for good cause reject any bid or part thereof. It further reserves the right to award a contract on a split order basis, or such combinations as shall best serve the interests of the City unless otherwise specified. No premiums, rebates or gratuities permitted, either with, prior to, or after award. This practice shall result in the cancellation of said award and/or return of items (as applicable) and the recommended removal of bidder from bid list(s).

3.25 BID PROTEST

Any protests or challenges to this competitive procurement shall be governed by Section 35.38 of the City's Code of Ordinances.

3.26 INDEMNIFICATION

The Successful Proposer shall pay all claims, losses, liens, settlements or judgments of any nature whatsoever in connection with the subsequent indemnifications including, but not limited to, reasonable attorney's fees (including appellate attorney's fees) and costs.

CITY reserves the right to select its own legal counsel to conduct any defense in any such proceeding and all costs and fees associated therewith shall be the responsibility of Successful Proposer under the indemnification agreement. Nothing contained herein is intended nor shall it be construed to waive City's rights and immunities under the common law or Florida Statute 768.28 as amended from time to time.

Additional indemnification requirements may be included under Special Terms and Conditions and/or as part of a specimen contract included in the solicitation package.

General Indemnification: To the fullest extent permitted by laws and regulations, Successful Proposer shall indemnify, defend, save and hold harmless the CITY, its officers, agents and employees, harmless from any and all claims, damages, losses, liabilities and expenses, direct, indirect or consequential arising out of or in consequential arising out of or alleged to have arisen out of or in consequence of the products, goods or services furnished by or operations of the Successful Proposer or his subcontractors, agents, officers, employees or independent contractors pursuant to or in the performance of the Contract.

Patent and Copyright Indemnification: Successful Proposer agrees to indemnify, defend, save and hold harmless the CITY, its officers, agents and employees, from all claims, damages, losses, liabilities and expenses arising out of any alleged infringement of copyrights, patent rights and/or the unauthorized or unlicensed use of any invention, process, material, property or other work manufactured or used in

connection with the performance of the Contract, including its use by CITY.

3.27 DEFAULT PROVISION

In the case of default by the bidder or contractor, the City of Pembroke Pines may procure the articles or services from any other sources and hold the bidder or contractor responsible for any excess costs occasioned or incurred thereby.

The City shall be the sole judge of nonperformance, which shall include any failure on the part of the successful Bidder to accept the Award, to furnish required documents, and/or to fulfill any portion of the contract within the time stipulated. Upon default by the successful Bidder to meet any terms of this agreement, the City will notify the Bidder five (5) days (weekends and holidays excluded) to remedy the default. Failure on the Contractor's part to correct the default within the required five (5) days shall result in the contract being terminated and upon the City notifying in writing the Contractor of its intentions and the effective date of the termination. The following shall constitute default:

A. Failure to perform the Work required under the contract and/or within the time required or failing to use the subcontractor, entities and personnel as identified and set forth, and to the degree specified in the contract.

B. Failure to begin the Work under this Bid within the time specified.

C. Failure to perform the Work with sufficient Workers and equipment or with sufficient materials to ensure timely completion.

D. Neglecting or refusing to remove materials or perform new Work where prior Work has been rejected as non-conforming with the terms of the contract.

E. Becoming insolvent, being declared bankrupt, or committing act of bankruptcy or insolvency, or making an assignment renders the successful Bidder incapable of performing the Work in accordance with and as required by the contract.

F. Failure to comply with any of the terms of the contract in any material respect.

In the event of default of a contract, the successful Bidder shall pay all attorney's fees and court costs incurred in collecting any damages. The successful Bidder shall pay the City for any and all costs incurred in ensuring the completion of the project.

Additional provisions may be included in the specimen contract.

3.28 ACCEPTANCE OF MATERIAL

The material delivered under this proposal shall remain the property of the seller until a physical inspection and actual usage of this material and/or services is made and thereafter accepted to the satisfaction of the City and must comply with the terms herein, and be fully in accord with specifications and of the highest quality. In the event the material and/or services supplied to the City are found to be defective or do not conform to specifications, the City reserves the right to cancel the order upon written notice to the seller and return product to seller at the seller's expense.

3.29 LOCAL GOVERNMENT PROMPT PAYMENT ACT

The City complies with Florida Statute 218.70, Florida Prompt Payment Act.

City of Pembroke Pines

Company Name: _____

PROPOSAL FORM

RFP #: AD-14-10
DATE: **_____, 2015**
TO: CITY OF PEMBROKE PINES
10100 PINES BOULEVARD
PEMBROKE PINES, FL 33026

IN ACCORDANCE WITH THE **"Request for Proposals"** dated **December 9, 2014** titled **"Red Light Camera Enforcement & LPR Monitoring System"** attached hereto as a part hereof the undersigned proposes the following:

Proposer shall provide a summary of costs as outlined below and as indicated on www.BidSync.com. In addition, the proposer must provide detailed pricing as indicated in **"Tab 6 – Project Cost"** of the bid package.

A) Total Cost to purchase the proposed Red Light Camera Enforcement & LPR Monitoring System (Not to include Field Equipment as defined in Section 1.5.3).		
Item	**Description**	**Amount**
A1)	All required **Software**	Please Submit Pricing via www.BidSync.com
A2)	All required **Hardware** (Not Including Field Equipment as defined in Section 1.5.3)	Please Submit Pricing via www.BidSync.com

B) Total Annual Maintenance & Support Costs		
Item	**Description**	**Amount**
B1)	**Software**	Please Submit Pricing via www.BidSync.com
B2)	**Hardware** (Not Including Field Equipment as defined in Section 1.5.3)	Please Submit Pricing via www.BidSync.com

C) Itemized Cost for Field Equipment (as defined in Section 1.5.3) and Related Maintenance & Support Costs		
Item	**Description**	**Amount**
C1)	**Red Light Camera** - Purchase and installation of all related Field Equipment as defined in Section 1.5.3 (Per Camera/Per Approach)	Please Submit Pricing via www.BidSync.com
C2)	**Red Light Camera** - Total Annual Maintenance & Support Costs (Per Camera/Per Approach)	Please Submit Pricing via www.BidSync.com
C3)	**License Plate Recognition Camera** - Purchase and installation of all related Field Equipment as defined in Section 1.5.3 (Per Camera/Per Approach)	Please Submit Pricing via www.BidSync.com
C4)	**License Plate Recognition Camera** - Total Annual Maintenance & Support Costs (Per Camera/Per Approach)	Please Submit Pricing via www.BidSync.com

Company Name: _____

Estimated number of calendar days to complete the installation of all hardware and software and to have the **Red Light Camera Enforcement & LPR Monitoring System** fully functioning:

_____ Calendar days

Proposal Checklist

Is there at least one original and two copies of the proposal submitted within this package?	Yes_____	Initial_____
Is there two electronic copies of the proposal submitted within this package?	Yes_____	Initial_____
Are completed Attachments A, B, C, D, E, F, G, H, & L included in this package?	Yes_____	Initial_____
Do all prices include shipping and or freight costs?	Yes_____	Initial_____

Please confirm receipt of addenda:

I received Addendum # _____ Dated _____ Initial_____

I received Addendum # _____ Dated _____ Initial_____

I received Addendum # _____ Dated _____ Initial_____

Did you receive any additional addenda? If so, please specify: _____

_____

PLEASE PRINT

NAME: _____TITLE: _____

COMPANY: _____

STREET ADDRESS: _____

CITY, STATE & ZIP CODE: _____

TELEPHONE: _____ FAX: _____

E-MAIL: _____

SIGNATURE: _____

(OFFICE USE ONLY) Vendor number: _____

Please entirely complete this vendor information form along with the IRS Form W-9, and email to accountspayable@ppines.com

City of Pembroke Pines
Office of the City Clerk
10100 Pines Boulevard
Pembroke Pines, FL 33026

Vendor Information Form

Operating Name (Payee)			
Legal Name (as filed with IRS)			
Remit-to Address (For Payments)			
Remit-to Contact Name:		**Title:**	
Email Address:			
Phone #:		**Fax #**	
Order-from Address (For purchase orders)			
Order-from Contact Name:		**Title:**	
Email Address:			
Phone #:		**Fax #**	
Return-to Address (For product returns)			
Return-to Contact Name		**Title:**	
Email Address:			
Phone #:		**Fax #**	
Payment Terms:			

Type of Business (please check one and provide Federal Tax identification or social security Number)

☐ **Corporation** — **Federal ID Number:** _____

☐ **Sole Proprietorship/Individual** — **Social Security No.:** _____

☐ **Partnership**

☐ **Health Care Service Provider**

☐ **LLC – C (C corporation) – S (S corporation) – P (partnership)**

☐ **Other (Specify):** _____

Name & Title of Applicant _____

Signature of Applicant _____ **Date** _____

DOCUMENT FOR COMMISSION REVIEW

Form **W-9**
(Rev. January 2011)
Department of the Treasury
Internal Revenue Service

Request for Taxpayer Identification Number and Certification

Give Form to the requester. Do not send to the IRS.

Print or type
See **Specific Instructions** on page 2.

Name (as shown on your income tax return)

Business name/disregarded entity name, if different from above

Check appropriate box for federal tax classification (required): ☐ Individual/sole proprietor ☐ C Corporation ☐ S Corporation ☐ Partnership ☐ Trust/estate

☐ Limited liability company. Enter the tax classification (C=C corporation, S=S corporation, P=partnership) ▶

☐ Other (see instructions) ▶

☐ Exempt payee

Address (number, street, and apt. or suite no.)

Requester's name and address (optional)

City, state, and ZIP code

List account number(s) here (optional)

Part I Taxpayer Identification Number (TIN)

Enter your TIN in the appropriate box. The TIN provided must match the name given on the "Name" line to avoid backup withholding. For individuals, this is your social security number (SSN). However, for a resident alien, sole proprietor, or disregarded entity, see the Part I instructions on page 3. For other entities, it is your employer identification number (EIN). If you do not have a number, see *How to get a TIN* on page 3.

Note. If the account is in more than one name, see the chart on page 4 for guidelines on whose number to enter.

Social security number

☐☐☐ – ☐☐ – ☐☐☐☐

Employer identification number

☐☐ – ☐☐☐☐☐☐☐

Part II Certification

Under penalties of perjury, I certify that:

1. The number shown on this form is my correct taxpayer identification number (or I am waiting for a number to be issued to me), and
2. I am not subject to backup withholding because: (a) I am exempt from backup withholding, or (b) I have not been notified by the Internal Revenue Service (IRS) that I am subject to backup withholding as a result of a failure to report all interest or dividends, or (c) the IRS has notified me that I am no longer subject to backup withholding, and
3. I am a U.S. citizen or other U.S. person (defined below).

Certification instructions. You must cross out item 2 above if you have been notified by the IRS that you are currently subject to backup withholding because you have failed to report all interest and dividends on your tax return. For real estate transactions, item 2 does not apply. For mortgage interest paid, acquisition or abandonment of secured property, cancellation of debt, contributions to an individual retirement arrangement (IRA), and generally, payments other than interest and dividends, you are not required to sign the certification, but you must provide your correct TIN. See the instructions on page 4.

Sign Here **Signature of U.S. person ▶** **Date ▶**

General Instructions

Section references are to the Internal Revenue Code unless otherwise noted.

Purpose of Form

A person who is required to file an information return with the IRS must obtain your correct taxpayer identification number (TIN) to report, for example, income paid to you, real estate transactions, mortgage interest you paid, acquisition or abandonment of secured property, cancellation of debt, or contributions you made to an IRA.

Use Form W-9 only if you are a U.S. person (including a resident alien), to provide your correct TIN to the person requesting it (the requester) and, when applicable, to:

1. Certify that the TIN you are giving is correct (or you are waiting for a number to be issued),

2. Certify that you are not subject to backup withholding, or

3. Claim exemption from backup withholding if you are a U.S. exempt payee. If applicable, you are also certifying that as a U.S. person, your allocable share of any partnership income from a U.S. trade or business is not subject to the withholding tax on foreign partners' share of effectively connected income.

Note. If a requester gives you a form other than Form W-9 to request your TIN, you must use the requester's form if it is substantially similar to this Form W-9.

Definition of a U.S. person. For federal tax purposes, you are considered a U.S. person if you are:

- An individual who is a U.S. citizen or U.S. resident alien,
- A partnership, corporation, company, or association created or organized in the United States or under the laws of the United States,
- An estate (other than a foreign estate), or
- A domestic trust (as defined in Regulations section 301.7701-7).

Special rules for partnerships. Partnerships that conduct a trade or business in the United States are generally required to pay a withholding tax on any foreign partners' share of income from such business. Further, in certain cases where a Form W-9 has not been received, a partnership is required to presume that a partner is a foreign person, and pay the withholding tax. Therefore, if you are a U.S. person that is a partner in a partnership conducting a trade or business in the United States, provide Form W-9 to the partnership to establish your U.S. status and avoid withholding on your share of partnership income.

The person who gives Form W-9 to the partnership for purposes of establishing its U.S. status and avoiding withholding on its allocable share of net income from the partnership conducting a trade or business in the United States is in the following cases:

- The U.S. owner of a disregarded entity and not the entity,
- The U.S. grantor or other owner of a grantor trust and not the trust, and
- The U.S. trust (other than a grantor trust) and not the beneficiaries of the trust.

Foreign person. If you are a foreign person, do not use Form W-9. Instead, use the appropriate Form W-8 (see Publication 515, Withholding of Tax on Nonresident Aliens and Foreign Entities).

Nonresident alien who becomes a resident alien. Generally, only a nonresident alien individual may use the terms of a tax treaty to reduce or eliminate U.S. tax on certain types of income. However, most tax treaties contain a provision known as a "saving clause." Exceptions specified in the saving clause may permit an exemption from tax to continue for certain types of income even after the payee has otherwise become a U.S. resident alien for tax purposes.

If you are a U.S. resident alien who is relying on an exception contained in the saving clause of a tax treaty to claim an exemption from U.S. tax on certain types of income, you must attach a statement to Form W-9 that specifies the following five items:

1. The treaty country. Generally, this must be the same treaty under which you claimed exemption from tax as a nonresident alien.
2. The treaty article addressing the income.
3. The article number (or location) in the tax treaty that contains the saving clause and its exceptions.
4. The type and amount of income that qualifies for the exemption from tax.
5. Sufficient facts to justify the exemption from tax under the terms of the treaty article.

Example. Article 20 of the U.S.-China income tax treaty allows an exemption from tax for scholarship income received by a Chinese student temporarily present in the United States. Under U.S. law, this student will become a resident alien for tax purposes if his or her stay in the United States exceeds 5 calendar years. However, paragraph 2 of the first Protocol to the U.S.-China treaty (dated April 30, 1984) allows the provisions of Article 20 to continue to apply even after the Chinese student becomes a resident alien of the United States. A Chinese student who qualifies for this exception (under paragraph 2 of the first protocol) and is relying on this exception to claim an exemption from tax on his or her scholarship or fellowship income would attach to Form W-9 a statement that includes the information described above to support that exemption.

If you are a nonresident alien or a foreign entity not subject to backup withholding, give the requester the appropriate completed Form W-8.

What is backup withholding? Persons making certain payments to you must under certain conditions withhold and pay to the IRS a percentage of such payments. This is called "backup withholding." Payments that may be subject to backup withholding include interest, tax-exempt interest, dividends, broker and barter exchange transactions, rents, royalties, nonemployee pay, and certain payments from fishing boat operators. Real estate transactions are not subject to backup withholding.

You will not be subject to backup withholding on payments you receive if you give the requester your correct TIN, make the proper certifications, and report all your taxable interest and dividends on your tax return.

Payments you receive will be subject to backup withholding if:

1. You do not furnish your TIN to the requester,
2. You do not certify your TIN when required (see the Part II instructions on page 3 for details),
3. The IRS tells the requester that you furnished an incorrect TIN,
4. The IRS tells you that you are subject to backup withholding because you did not report all your interest and dividends on your tax return (for reportable interest and dividends only), or
5. You do not certify to the requester that you are not subject to backup withholding under 4 above (for reportable interest and dividend accounts opened after 1983 only).

Certain payees and payments are exempt from backup withholding. See the instructions below and the separate Instructions for the Requester of Form W-9.

Also see *Special rules for partnerships* on page 1.

Updating Your Information

You must provide updated information to any person to whom you claimed to be an exempt payee if you are no longer an exempt payee and anticipate receiving reportable payments in the future from this person. For example, you may need to provide updated information if you are a C corporation that elects to be an S corporation, or if you no longer are tax exempt. In addition, you must furnish a new Form W-9 if the name or TIN changes for the account, for example, if the grantor of a grantor trust dies.

Penalties

Failure to furnish TIN. If you fail to furnish your correct TIN to a requester, you are subject to a penalty of $50 for each such failure unless your failure is due to reasonable cause and not to willful neglect.

Civil penalty for false information with respect to withholding. If you make a false statement with no reasonable basis that results in no backup withholding, you are subject to a $500 penalty.

Criminal penalty for falsifying information. Willfully falsifying certifications or affirmations may subject you to criminal penalties including fines and/or imprisonment.

Misuse of TINs. If the requester discloses or uses TINs in violation of federal law, the requester may be subject to civil and criminal penalties.

Specific Instructions

Name

If you are an individual, you must generally enter the name shown on your income tax return. However, if you have changed your last name, for instance, due to marriage without informing the Social Security Administration of the name change, enter your first name, the last name shown on your social security card, and your new last name.

If the account is in joint names, list first, and then circle, the name of the person or entity whose number you entered in Part I of the form.

Sole proprietor. Enter your individual name as shown on your income tax return on the "Name" line. You may enter your business, trade, or "doing business as (DBA)" name on the "Business name/disregarded entity name" line.

Partnership, C Corporation, or S Corporation. Enter the entity's name on the "Name" line and any business, trade, or "doing business as (DBA) name" on the "Business name/disregarded entity name" line.

Disregarded entity. Enter the owner's name on the "Name" line. The name of the entity entered on the "Name" line should never be a disregarded entity. The name on the "Name" line must be the name shown on the income tax return on which the income will be reported. For example, if a foreign LLC that is treated as a disregarded entity for U.S. federal tax purposes has a domestic owner, the domestic owner's name is required to be provided on the "Name" line. If the direct owner of the entity is also a disregarded entity, enter the first owner that is not disregarded for federal tax purposes. Enter the disregarded entity's name on the "Business name/disregarded entity name" line. If the owner of the disregarded entity is a foreign person, you must complete an appropriate Form W-8.

Note. Check the appropriate box for the federal tax classification of the person whose name is entered on the "Name" line (Individual/sole proprietor, Partnership, C Corporation, S Corporation, Trust/estate).

Limited Liability Company (LLC). If the person identified on the "Name" line is an LLC, check the "Limited liability company" box only and enter the appropriate code for the tax classification in the space provided. If you are an LLC that is treated as a partnership for federal tax purposes, enter "P" for partnership. If you are an LLC that has filed a Form 8832 or a Form 2553 to be taxed as a corporation, enter "C" for C corporation or "S" for S corporation. If you are an LLC that is disregarded as an entity separate from its owner under Regulation section 301.7701-3 (except for employment and excise tax), do not check the LLC box unless the owner of the LLC (required to be identified on the "Name" line) is another LLC that is not disregarded for federal tax purposes. If the LLC is disregarded as an entity separate from its owner, enter the appropriate tax classification of the owner identified on the "Name" line.

DOCUMENT FOR COMMISSION REVIEW

Other entities. Enter your business name as shown on required federal tax documents on the "Name" line. This name should match the name shown on the charter or other legal document creating the entity. You may enter any business, trade, or DBA name on the "Business name/ disregarded entity name" line.

Exempt Payee

If you are exempt from backup withholding, enter your name as described above and check the appropriate box for your status, then check the "Exempt payee" box in the line following the "Business name/ disregarded entity name," sign and date the form.

Generally, individuals (including sole proprietors) are not exempt from backup withholding. Corporations are exempt from backup withholding for certain payments, such as interest and dividends.

Note. If you are exempt from backup withholding, you should still complete this form to avoid possible erroneous backup withholding.

The following payees are exempt from backup withholding:

1. An organization exempt from tax under section 501(a), any IRA, or a custodial account under section 403(b)(7) if the account satisfies the requirements of section 401(f)(2),

2. The United States or any of its agencies or instrumentalities,

3. A state, the District of Columbia, a possession of the United States, or any of their political subdivisions or instrumentalities,

4. A foreign government or any of its political subdivisions, agencies, or instrumentalities, or

5. An international organization or any of its agencies or instrumentalities.

Other payees that may be exempt from backup withholding include:

6. A corporation,

7. A foreign central bank of issue,

8. A dealer in securities or commodities required to register in the United States, the District of Columbia, or a possession of the United States,

9. A futures commission merchant registered with the Commodity Futures Trading Commission,

10. A real estate investment trust,

11. An entity registered at all times during the tax year under the Investment Company Act of 1940,

12. A common trust fund operated by a bank under section 584(a),

13. A financial institution,

14. A middleman known in the investment community as a nominee or custodian, or

15. A trust exempt from tax under section 664 or described in section 4947.

The following chart shows types of payments that may be exempt from backup withholding. The chart applies to the exempt payees listed above, 1 through 15.

IF the payment is for . . .	THEN the payment is exempt for . . .
Interest and dividend payments	All exempt payees except for 9
Broker transactions	Exempt payees 1 through 5 and 7 through 13. Also, C corporations.
Barter exchange transactions and patronage dividends	Exempt payees 1 through 5
Payments over $600 required to be reported and direct sales over $5,000 [1]	Generally, exempt payees 1 through 7 [2]

[1] See Form 1099-MISC, Miscellaneous Income, and its instructions.

[2] However, the following payments made to a corporation and reportable on Form 1099-MISC are not exempt from backup withholding: medical and health care payments, attorneys' fees, gross proceeds paid to an attorney, and payments for services paid by a federal executive agency.

Part I. Taxpayer Identification Number (TIN)

Enter your TIN in the appropriate box. If you are a resident alien and you do not have and are not eligible to get an SSN, your TIN is your IRS individual taxpayer identification number (ITIN). Enter it in the social security number box. If you do not have an ITIN, see *How to get a TIN* below.

If you are a sole proprietor and you have an EIN, you may enter either your SSN or EIN. However, the IRS prefers that you use your SSN.

If you are a single-member LLC that is disregarded as an entity separate from its owner (see *Limited Liability Company (LLC)* on page 2), enter the owner's SSN (or EIN, if the owner has one). Do not enter the disregarded entity's EIN. If the LLC is classified as a corporation or partnership, enter the entity's EIN.

Note. See the chart on page 4 for further clarification of name and TIN combinations.

How to get a TIN. If you do not have a TIN, apply for one immediately. To apply for an SSN, get Form SS-5, Application for a Social Security Card, from your local Social Security Administration office or get this form online at *www.ssa.gov*. You may also get this form by calling 1-800-772-1213. Use Form W-7, Application for IRS Individual Taxpayer Identification Number, to apply for an ITIN, or Form SS-4, Application for Employer Identification Number, to apply for an EIN. You can apply for an EIN online by accessing the IRS website at *www.irs.gov/businesses* and clicking on Employer Identification Number (EIN) under Starting a Business. You can get Forms W-7 and SS-4 from the IRS by visiting IRS.gov or by calling 1-800-TAX-FORM (1-800-829-3676).

If you are asked to complete Form W-9 but do not have a TIN, write "Applied For" in the space for the TIN, sign and date the form, and give it to the requester. For interest and dividend payments, and certain payments made with respect to readily tradable instruments, generally you will have 60 days to get a TIN and give it to the requester before you are subject to backup withholding on payments. The 60-day rule does not apply to other types of payments. You will be subject to backup withholding on all such payments until you provide your TIN to the requester.

Note. Entering "Applied For" means that you have already applied for a TIN or that you intend to apply for one soon.

Caution: *A disregarded domestic entity that has a foreign owner must use the appropriate Form W-8.*

Part II. Certification

To establish to the withholding agent that you are a U.S. person, or resident alien, sign Form W-9. You may be requested to sign by the withholding agent even if item 1, below, and items 4 and 5 on page 4 indicate otherwise.

For a joint account, only the person whose TIN is shown in Part I should sign (when required). In the case of a disregarded entity, the person identified on the "Name" line must sign. Exempt payees, see *Exempt Payee* on page 3.

Signature requirements. Complete the certification as indicated in items 1 through 3, below, and items 4 and 5 on page 4.

1. Interest, dividend, and barter exchange accounts opened before 1984 and broker accounts considered active during 1983. You must give your correct TIN, but you do not have to sign the certification.

2. Interest, dividend, broker, and barter exchange accounts opened after 1983 and broker accounts considered inactive during 1983. You must sign the certification or backup withholding will apply. If you are subject to backup withholding and you are merely providing your correct TIN to the requester, you must cross out item 2 in the certification before signing the form.

3. Real estate transactions. You must sign the certification. You may cross out item 2 of the certification.

4. Other payments. You must give your correct TIN, but you do not have to sign the certification unless you have been notified that you have previously given an incorrect TIN. "Other payments" include payments made in the course of the requester's trade or business for rents, royalties, goods (other than bills for merchandise), medical and health care services (including payments to corporations), payments to a nonemployee for services, payments to certain fishing boat crew members and fishermen, and gross proceeds paid to attorneys (including payments to corporations).

5. Mortgage interest paid by you, acquisition or abandonment of secured property, cancellation of debt, qualified tuition program payments (under section 529), IRA, Coverdell ESA, Archer MSA or HSA contributions or distributions, and pension distributions. You must give your correct TIN, but you do not have to sign the certification.

What Name and Number To Give the Requester

For this type of account:	Give name and SSN of:
1. Individual	The individual
2. Two or more individuals (joint account)	The actual owner of the account or, if combined funds, the first individual on the account [1]
3. Custodian account of a minor (Uniform Gift to Minors Act)	The minor [2]
4. a. The usual revocable savings trust (grantor is also trustee)	The grantor-trustee [1]
b. So-called trust account that is not a legal or valid trust under state law	The actual owner [1]
5. Sole proprietorship or disregarded entity owned by an individual	The owner [3]
6. Grantor trust filing under Optional Form 1099 Filing Method 1 (see Regulation section 1.671-4(b)(2)(i)(A))	The grantor*
For this type of account:	**Give name and EIN of:**
7. Disregarded entity not owned by an individual	The owner
8. A valid trust, estate, or pension trust	Legal entity [4]
9. Corporation or LLC electing corporate status on Form 8832 or Form 2553	The corporation
10. Association, club, religious, charitable, educational, or other tax-exempt organization	The organization
11. Partnership or multi-member LLC	The partnership
12. A broker or registered nominee	The broker or nominee
13. Account with the Department of Agriculture in the name of a public entity (such as a state or local government, school district, or prison) that receives agricultural program payments	The public entity
14. Grantor trust filing under the Form 1041 Filing Method or the Optional Form 1099 Filing Method 2 (see Regulation section 1.671-4(b)(2)(i)(B))	The trust

[1] List first and circle the name of the person whose number you furnish. If only one person on a joint account has an SSN, that person's number must be furnished.

[2] Circle the minor's name and furnish the minor's SSN.

[3] You must show your individual name and you may also enter your business or "DBA" name on the "Business name/disregarded entity" name line. You may use either your SSN or EIN (if you have one), but the IRS encourages you to use your SSN.

[4] List first and circle the name of the trust, estate, or pension trust. (Do not furnish the TIN of the personal representative or trustee unless the legal entity itself is not designated in the account title.) Also see *Special rules for partnerships* on page 1.

***Note.** Grantor also must provide a Form W-9 to trustee of trust.

Note. If no name is circled when more than one name is listed, the number will be considered to be that of the first name listed.

Secure Your Tax Records from Identity Theft

Identity theft occurs when someone uses your personal information such as your name, social security number (SSN), or other identifying information, without your permission, to commit fraud or other crimes. An identity thief may use your SSN to get a job or may file a tax return using your SSN to receive a refund.

To reduce your risk:

- Protect your SSN,
- Ensure your employer is protecting your SSN, and
- Be careful when choosing a tax preparer.

If your tax records are affected by identity theft and you receive a notice from the IRS, respond right away to the name and phone number printed on the IRS notice or letter.

If your tax records are not currently affected by identity theft but you think you are at risk due to a lost or stolen purse or wallet, questionable credit card activity or credit report, contact the IRS Identity Theft Hotline at 1-800-908-4490 or submit Form 14039.

For more information, see Publication 4535, Identity Theft Prevention and Victim Assistance.

Victims of identity theft who are experiencing economic harm or a system problem, or are seeking help in resolving tax problems that have not been resolved through normal channels, may be eligible for Taxpayer Advocate Service (TAS) assistance. You can reach TAS by calling the TAS toll-free case intake line at 1-877-777-4778 or TTY/TDD 1-800-829-4059.

Protect yourself from suspicious emails or phishing schemes. Phishing is the creation and use of email and websites designed to mimic legitimate business emails and websites. The most common act is sending an email to a user falsely claiming to be an established legitimate enterprise in an attempt to scam the user into surrendering private information that will be used for identity theft.

The IRS does not initiate contacts with taxpayers via emails. Also, the IRS does not request personal detailed information through email or ask taxpayers for the PIN numbers, passwords, or similar secret access information for their credit card, bank, or other financial accounts.

If you receive an unsolicited email claiming to be from the IRS, forward this message to *phishing@irs.gov.* You may also report misuse of the IRS name, logo, or other IRS property to the Treasury Inspector General for Tax Administration at 1-800-366-4484. You can forward suspicious emails to the Federal Trade Commission at: *spam@uce.gov* or contact them at *www.ftc.gov/idtheft* or 1-877-IDTHEFT (1-877-438-4338).

Visit IRS.gov to learn more about identity theft and how to reduce your risk.

Privacy Act Notice

Section 6109 of the Internal Revenue Code requires you to provide your correct TIN to persons (including federal agencies) who are required to file information returns with the IRS to report interest, dividends, or certain other income paid to you; mortgage interest you paid; the acquisition or abandonment of secured property; the cancellation of debt; or contributions you made to an IRA, Archer MSA, or HSA. The person collecting this form uses the information on the form to file information returns with the IRS, reporting the above information. Routine uses of this information include giving it to the Department of Justice for civil and criminal litigation and to cities, states, the District of Columbia, and U.S. possessions for use in administering their laws. The information also may be disclosed to other countries under a treaty, to federal and state agencies to enforce civil and criminal laws, or to federal law enforcement and intelligence agencies to combat terrorism. You must provide your TIN whether or not you are required to file a tax return. Under section 3406, payers must generally withhold a percentage of taxable interest, dividend, and certain other payments to a payee who does not give a TIN to the payer. Certain penalties may also apply for providing false or fraudulent information.

NON-COLLUSIVE AFFIDAVIT

STATE OF _____

COUNTY OF _____

_____ being first duly sworn, deposes and says that:

BIDDER is the

_____,

(Owner, Partner, Officer, Representative or Agent)

BIDDER is fully informed respecting the preparation and contents of the attached Bid and of all pertinent circumstances respecting such Bid;

Such Bid is genuine and is not a collusive or sham Bid;

Neither the said BIDDER nor any of its officers, partners, owners, agents, representative, employees or parties in interest, including this affidavit, have in any way colluded, conspired, connived or agreed, directly or indirectly, with any other BIDDER, firm or person to submit a collusive or sham Bid in connection with the Contract for which the attached Bid has been submitted; or to refrain from bidding in connection with such Contract; or have in any manner, directly or indirectly, sought by agreement or collusion, or communications, or conference with any BIDDER, firm, or person to fix the price or prices in the attached Bid or any other BIDDER, or to fix any overhead, profit, or cost element of the Bid Price or the Bid Price of any other BIDDER, or to secure through any collusion conspiracy, connivance, or unlawful agreement any advantage against (Recipient), or any person interested in the proposed Contract;

The price of items quoted in the attached Bid are fair and proper and are not tainted by collusion, conspiracy, connivance, or unlawful agreement on the part of the BIDDER or any other of its agents, representatives, owners, employees or parties in interest, including this affidavit.

By _____

Subscribed and sworn to before me this _____ day of _____, 20____.

_____

Notary Public (Signature)

My Commission Expires:

_____

SWORN STATEMENT
ON PUBLIC ENTITY CRIMES
UNDER FLORIDA STATUTES CHAPTER 287.133(3)(a).

THIS FORM MUST BE SIGNED IN THE PRESENCE OF A NOTARY PUBLIC OR OTHER OFFICER AUTHORIZED TO ADMINISTER OATHS.

1. This sworn statement is submitted by _____ (name of entity submitting sworn statement) whose business address is and (if applicable) its Federal Employer Identification Number (FEIN) is _____. (If the entity has no FEIN, include the Social Security Number of the individual signing this sworn statement: _____.)

2. My name is _____ and my
(Please print name of individual signing)

   relationship to the entity named above is _____.

3. I understand that a "public entity crime" as defined in Paragraph 287.133(1)(g), Florida Statutes, means a violation of any state or federal law by a person with respect to and directly related to the transaction of business with any public entity or with an agency or political subdivision of any other state or with the United States, including, but not limited to, any bid, proposal, reply, or contract for goods or services, any lease for real property, or any contract for the construction or repair of a public building or public work, involving antitrust, fraud, theft, bribery, collusion, racketeering, conspiracy, or material misrepresentation.

4. I understand that a "convicted" or "conviction" as defined in Paragraph 287.133(1)(b), Florida Statutes, means a finding of guilt or a conviction of a public entity crime, with or without an adjudication of guilt, in any federal or state trial court of record relating to charges brought by indictment or information after July 1, 1989, as a result of a jury verdict, nonjury trial, or entry of a plea of guilty or nolo contendere.

5. I understand that an "affiliate" as defined in Paragraph 287.133(1)(a), Florida Statutes, means:

   1. A predecessor or successor of a person convicted of a public entity crime: or

   2. An entity under the control of any natural person who is active in the management of the entity and who has been convicted of a public entity crime. The term "affiliate" includes those officers, directors, executives, partners, shareholders, employees, members, and agents who are active in the management of an affiliate. The Cityship by one person of shares constituting a controlling interest

in another person, or a pooling of equipment or income among persons when not for fair market value under an arm's length agreement, shall be a prima facie case that one person controls another person. A person who knowingly enters into a joint venture with a person who has been convicted of a public entity crime in Florida during the preceding 36 months shall be considered an affiliate.

6. I understand that a "person" as defined in Paragraph 287.133(1)(e), Florida Statutes, means any natural person or any entity organized under the laws of any state or of the United States with the legal power to enter into a binding contract and which bids or applies to bid on contracts let by a public entity, or which otherwise transacts or applies to transact business with a public entity, or which otherwise transacts or applies to transact business with a public entity. The term "person" includes those officers, directors, executives, partners, shareholders, employees, members, and agents who are active in management of an entity.

7. Based on information and belief, the statement which I have marked below is true in relation to the entity submitting this sworn statement. (Please indicate which statement applies.)

___ Neither the entity submitting this sworn statement, nor any officers, directors, executives, partners, shareholders, employees, members, or agents who are active in management of the entity, nor any affiliate of the entity have been charged with and convicted of a public entity crime subsequent to July 1, 1989.

___ The entity submitting this sworn statement, or one or more of the officers, directors, executives, partners, shareholders, employees, members, or agents who are active in management of the entity, or an affiliate of the entity has been charged with and convicted of a public entity crime subsequent to July 1, 1989, AND (Please indicate which additional statement applies.)

____There has been a proceeding concerning the conviction before a hearing officer of the State of Florida, Division of Administrative Hearings. The final order entered by the hearing officer did not place the person or affiliate on the convicted vendor list. (Please attach a copy of the final order.)

___ The person or affiliate was placed on the convicted vendor list. There has been a subsequent proceeding before a hearing officer of the State of Florida, Division of Administrative Hearings. The final order entered by the hearing officer determined that it was in the public interest to remove the person or affiliate from the convicted vendor list. (Please attach a copy of the final order.)

___ The person or affiliate has not been placed on the convicted vendor list. (Please describe any action taken by or pending with the Department of General Services.)

_____ _____

Bidder's Name Signature

Date: _____

State of: _____

County of : _____

The foregoing instrument was acknowledged before me this _____ day of _____ _____, 20____, by_____, who is (who are) personally known to me or who has produced _____ as identification and who did (did not) take an oath.

_____

Notary Public Signature

_____

Notary Name, Printed, Typed or Stamped

Commission Number:_____

My Commission Expires:_____

City of Pembroke Pines

LOCAL VENDOR PREFERENCE CERTIFICATION

SECTION 1 GENERAL TERM

LOCAL PREFERENCE

The evaluation of competitive bids is subject to section 35.36 of the City's Procurement Procedures which, except where contrary to federal and state law, or any other funding source requirements, provides that preference be given to local businesses. To satisfy this requirement, the vendor shall affirm in writing its compliance with either of the following objective criteria as of the bid or proposal submission date stated in the solicitation. A local business shall be defined as:

1. "Local Pembroke Pines vendor" shall mean a business entity which has maintained a permanent place of business with full-time employees within the City limits for a minimum of one (1) year prior to the date of issuance of a bid or proposal solicitation. The permanent place of business may not be a post office box. The business location must actually distribute goods or services from that location. In addition, the business must have a current business tax receipt from the City of Pembroke Pines.

OR;

2. "Local Broward County vendor" shall mean or business entity which has maintained a permanent place of business with full-time employees within the Broward County limits for a minimum of one (1) year prior to the date of issuance of a bid or proposal solicitation. The permanent place of business may not be a post office box. The business location must actually distribute goods or services from that location. In addition, the business must have a current business tax receipt from the Broward County or the city within Broward County where the business resides.

The preference is used to evaluate the submittals received from bidders are assigned point totals, a preference of five percent (5%) of the total evaluation point, or five percent (5%) of the total price, shall be given to the **Local Pembroke Pines Vendor(s);** A preference of two and a half percent (2.5%) of the total evaluation point for local, or two and a half percent (2.5%) of the total price, shall be given to the **Local Broward County Vendor(s)**.

COMPARISON OF QUALIFICATIONS

The preferences established in no way prohibit the right of the City to compare quality of supplies or services for purchase and to compare qualifications, character, responsibility and fitness of all persons, firms or corporations submitting bids or proposals. Further, the preference established in no way prohibit the right of the city from giving any other preference permitted by law instead of the preferences granted, nor prohibit the city to select the bid or proposal which is the most responsible and in the best interests of the city.

SECTION 2 AFFIRMATION

LOCAL PREFERENCE CERTIFICATION:

☐ Place a check mark here only if affirming bidder meets requirements above as a Local Pembroke Pines Vendor. In addition, the business must attach a current business tax receipt from the City of Pembroke Pines.

☐ Place a check mark here only if affirming bidder meets requirements above as a Local Broward County Vendor. In addition, the business must attach a current business tax receipt from the Broward County or the city within Broward County where the business resides.

☐ Place a check mark here only if affirming bidder does not meet the requirements above as a Local Vendor.

Failure to complete this certification at this time (by checking either of the boxes above) shall render the vendor ineligible for Local Preference.

COMPANY NAME: _____

AUTHORIZED SIGNATURE: _____

City of Pembroke Pines

VETERAN OWNED SMALL BUSINESS (VOSB) PREFERENCE CERTIFICATION

SECTION 1 GENERAL TERM

VETERAN OWNED SMALL BUSINESS (VOSB) PREFEREENCE

The evaluation of competitive bids is subject to section 35.37 of the City's Procurement Procedures which, except where contrary to federal and state law, or any other funding source requirements, provides that preference be given to veteran owned small businesses. To satisfy this requirement, the vendor shall affirm in writing its compliance with the following objective criteria as of the bid or proposal submission date stated in the solicitation. A veteran owned small business shall be defined as:

1. "Veteran Owned Small Business" shall mean a business entity which has received a "Determination Letter" from the United States Department of Veteran Affairs Center for Verification and Evaluation notifying the business that they have been approved as a Veteran Owned Small Business (VOSB).

A preference of two and a half percent (2.5%) of the total evaluation point, or two and a half percent (2.5%) of the total price, shall be given to the **Veteran Owned Small Business (VOSB)**. This shall mean that if a **VOSB** submits a bid/quote that is within 2.5% of the lowest price submitted by any vendor, the **VOSB** shall have an option to submit another bid which is at least 1% lower than the lowest responsive bid/quote. If the **VOSB** submits a bid which is at least 1% lower than that lowest responsive bid/quote, then the award will go to the **VOSB**. If not, the award will be made to the vendor that submits the lowest responsive bid/quote. If the lowest responsive and responsible bidder IS a **"Local Pembroke Pines Vendor" (LPPV)** or a **"Local Broward County Vendor" (LBCV)** as established in Section 35.36 of the City's Code of Ordinances, entitled "Local Vendor Preference", then the award will be made to that vendor and no other bidders will be given an opportunity to submit additional bids as described herein.

If there is a **LPPV**, a **LBCV**, and a **VOSB** participating in the same bid solicitation and all three vendors qualify to submit a second bid, the **LPPV** will be given first option. If the **LPPV** cannot beat the lowest bid received by at least 1%, an opportunity will be given to the **LBCV**. If the **LBCV** cannot beat the lowest bid by at least 1%, an opportunity will be given to the **VOSB**. If the **VOSB** cannot beat the lowest bid by at least 1%, then the bid will be awarded to the lowest bidder.

If multiple **VOSBs** submit bids/quotes which are within 2.5% of the lowest bid/quote and there are no **LPPV** or **LBCV** as described in Section 35.36 of the City's Code of Ordinance, entitled "Local Vendor Preference", then all **VOSBs** will be asked to submit a **Best and Final Offer (BAFO)**. The award will be made to the **VOSB** submitting the lowest **BAFO** providing that that **BAFO** is at least 1% lower than the lowest bid/quote received in the original solicitation. If no **VOSB** can beat the lowest bid/quote by at least 1%, then the award will be made to the lowest responsive bidder.

COMPARISON OF QUALIFICATIONS

The preferences established in no way prohibit the right of the City to compare quality of supplies or services for purchase and to compare qualifications, character, responsibility and fitness of all persons, firms or corporations submitting bids or proposals. Further, the preference established in no way prohibit the right of the city from giving any other preference permitted by law instead of the preferences granted, nor prohibit the city to select the bid or proposal which is the most responsible and in the best interests of the city.

SECTION 2 AFFIRMATION

VETERAN OWNED SMALL BUSINESS (VOSB) PREFEREENCE CERTIFICATION:

☐ Place a check mark here only if affirming bidder meets requirements above as a Veteran Owned Small Business. In addition, the bidder must attach the "Determination Letter" from the U.S. Dept. of Veteran Affairs Center.

☐ Place a check mark here only if affirming bidder does not meet the requirements above as a VOSB.

Failure to complete this certification at this time (by checking either of the boxes above) shall render the vendor ineligible for VOSB Preference. This form must be completed by/for the proposer; the proposer WILL NOT qualify for VOSB Preference based on their sub-contractors' qualifications.

COMPANY NAME: _____

AUTHORIZED SIGNATURE: _____

EQUAL BENEFITS CERTIFICATION FORM
FOR DOMESTIC PARTNERS AND ALL MARRIED COUPLES

Except where federal or state law mandates to the contrary, a Contractor awarded a Contract pursuant to a competitive solicitation shall provide benefits to Domestic Partners and spouses of its employees, irrespective of gender, on the same basis as it provides benefits to employees' spouses in traditional marriages.

The Contractor shall provide the City and/or the City Manager or his/her designee, access to its records for the purpose of audits and/or investigations to ascertain compliance with the provisions of this section, and upon request shall provide evidence that the Contractor is in compliance with the provisions of this section upon each new bid, contract renewal, or when the City Manager has received a complaint or has reason to believe the Contractor may not be in compliance with the provisions of this section. Records shall include but not be limited to providing the City and/or the City Manager or his/her designee with certified copies of the Contractor's records pertaining to its benefits policies and its employment policies and practices.

The Contractor must conspicuously make available to all employees and applicants for employment the following statement:

> **"During the performance of a contract with the City of Pembroke Pines, Florida, the Contractor will provide Equal Benefits to its employees with spouses, as defined by Section 35.39 of the City's Code of Ordinances, and its employees with Domestic Partners and all Married Couples".**

The posted statement must also include a City contact telephone number and email address which will be provided to each contractor when a covered contract is executed.

SECTION 1 DEFINITIONS

1. **Benefits** means the following plan, program or policy provided or offered by a contractor to its employees as part of the employer's total compensation package which may include but is not limited to sick leave, bereavement leave, family medical leave, and health benefits.

2. **Cash Equivalent** mean the amount of money paid to an employee with a domestic partner or spouse in lieu of providing benefits to the employee's domestic partner or spouse. The cash equivalent is equal to the employer's direct expense of providing benefits to an employee for his or her spouse from a traditional marriage.

3. **Covered Contract** means a contract between the City and a contractor awarded subsequent to the date when this section becomes effective valued at over $25,000 or the threshold amount required for competitive bids as required in section 35.18(A) of the Procurement Code.

4. **Domestic Partner** shall mean any two (2) adults of the same or different sex who have registered as domestic partners with a governmental body pursuant to state or local law authorizing such registration, or with an internal registry maintained by the employer of

at least one of the domestic partners. A contractor may institute an internal registry to allow for the provision of equal benefits to employees with domestic partners who do not register their partnerships pursuant to a governmental body authorizing such registration, or who are located in a jurisdiction where no such governmental domestic partnership registry exists. A contractor that institutes such registry shall not impose criteria for registration that are more stringent than those required for domestic partnership registration by the City of Pembroke Pines.

5. **Equal benefits** means the equality of benefits between employees with spouses and/or dependents of spouses and employees with domestic partners and/or dependents of domestic partners, and/or between spouses of employees and/or dependents of spouses and domestic partners of employees and/or dependents of domestic partners.

6. **Spouse** means one member of a married pair legally married under the laws of any state within the United States of America or any other jurisdiction under which such marriage is legally recognized, irrespective of gender.

7. **Traditional marriage** means a marriage between one man and one woman.

SECTION 2 CERTIFICATION OF CONTRACTOR

The firm providing a response, by virtue of the signature below, certifies that it is aware of the requirements of Section 35.39 "City Contractors providing Equal Benefits for Domestic Partners and all Married Couples" of the City's Code of Ordinances, and certifies the following (**Check only one box below)**:

☐ **A.** Contractor currently complies with the requirements of this section; or

☐ **B.** Contractor will comply with the conditions of this section at the time of contract award; or

☐ **C.** Contractor will not comply with the conditions of this section at the time of contract award: or

☐ **D.** Contractor does not comply with the conditions of this section because of the following allowable exemption **(Check only one box below):**

☐ **1.** The Contractor does not provide benefits to employees' spouses in traditional marriages;

☐ **2.** The Contractor provides an employee the cash equivalent of benefits because the Contractor is unable to provide benefits to employees' Domestic Partners or spouses despite making reasonable efforts to provide them. To meet this exception, the Contractor shall provide a notarized affidavit that it has made reasonable efforts to provide such benefits. The affidavit shall state the efforts taken to provide such benefits and the amount of the cash equivalent. Cash equivalent means the amount of money paid to an employee with a Domestic Partner or spouse rather than providing benefits to the employee's Domestic Partner or spouse. The cash equivalent is equal to the employer's direct expense of providing benefits to an employee's spouse;

☐ **3.** The Contractor is a religious organization, association, society, or any non-profit charitable or educational institution or organization operated supervised or controlled by or in conjunction with a religious organization, association, or society;

☐ **4.** The Contractor is a governmental agency;

☐ **5.** The contract is for the sale or lease of property;

☐ **6.** The covered contract is necessary to respond to an emergency;

☐ **7.** The provisions of this section would violate the laws, rules, or regulations of federal or state law (for example, section 287.055, Florida Statutes, Consultants' Competitive Negotiation Act);

☐ **8.** The provisions of this section would violate or be inconsistent with the terms or conditions of a grant or contract with the United States or the State of Florida; or

The certification shall be signed by an authorized officer of the Contractor. Failure to provide such certification (by checking the appropriate boxes above along with signing and notarizing this form) shall result in a Contractor being deemed non-responsive.

COMPANY NAME: _____

AUTHORIZED OFFICER SIGNATURE: _____

STATE OF _____)
) ss:
COUNTY OF _____)

BEFORE ME, an officer duly authorized by law to administer oaths and take acknowledgments, personally appeared _____ as _____ of _____ **(NAME OF CONTRACTOR)**, a company authorized to conduct business in the State of Florida, and acknowledged execution of the foregoing Agreement as the proper official of _____ **(NAME OF CONTRACTOR)** for the use and purposes mentioned in it and affixed the official seal of the corporation, and that the instrument is the act and deed of that corporation.

IN WITNESS OF THE FOREGOING, I have set my hand and official seal at in the State and County aforesaid on this _____day of _____, 20___.

_____
NOTARY PUBLIC

_____
(Name of Notary Typed, Printed or Stamped)

PROPOSER'S QUALIFICATIONS STATEMENT

PROPOSER shall furnish the following information. Failure to comply with this requirement will render Bid non-responsive and shall cause its rejection. Additional sheets shall be attached as required.

PROPOSER'S Name and Principal Address:

_____

_____

_____

Contact Person's Name and Title: _____

Contact Person's E-mail Address: _____

PROPOSER'S Telephone and Fax Number: _____

PROPOSER'S License Number: _____

(Please attach certificate of status, competency, and/or state registration.)

PROPOSER'S Federal Identification Number: _____

Number of years your organization has been in business_____

State the number of years your firm has been in business under your present business name _____

State the number of years your firm has been in business in the work specific to this RFP:_____

Names and titles of all officers, partners or individuals doing business under trade name:

_____

_____

_____

_____

The business is a: Sole Proprietorship ☐ Partnership ☐ Corporation ☐

IF USING A FICTITIOUS NAME, SUBMIT EVIDENCE OF COMPLIANCE WITH FLORIDA FICTITIOUS NAME STATUTE. (ATTACH IN PROPOSER EXHIBIT SECTION)

Under what former name has your business operated? Include a description of the business. Failure to include such information shall be deemed to be intentional misrepresentation by the City and shall render the proposer RFP submittals non-responsive.

_____

_____

_____

At what address was that business located?

_____

_____

_____

Name, address, and telephone number of surety company and agent who will provide the required bonds on this contract:

_____

_____

_____

Have you ever failed to complete work awarded to you. If so, when, where and why?

_____

_____

_____

Have you personally inspected the proposed WORK and do you have a complete plan for its performance?

_____

Will you subcontract any part of this WORK? If so, give details including a list of each sub-contractor(s) that will perform work in excess of ten percent (10%) of the contract amount and the work that will be performed by each subcontractor(s).

_____

_____

The foregoing list of subcontractor(s) may not be amended after award of the contract without the prior written approval of the Contract Administrator, whose approval shall not be reasonably withheld.

List and describe all bankruptcy petitions (voluntary or involuntary) which have been filed by or against the Proposer, its parent or subsidiaries or predecessor organizations during the past five (5) years. Include in the description the disposition of each such petition.

_____

_____

_____

List and describe all successful Bond claims made to your surety (ies) during the last five (5) years. The list and descriptions should include claims against the bond of the Proposer and its predecessor organization(s).

_____

_____

List all claims, arbitrations, administrative hearings and lawsuits brought by or against the Proposer or its predecessor organizations(s) during the last (10) years. The list shall include all case names; case, arbitration or hearing identification numbers; the name of the project over which the dispute arose; and a description of the subject matter of the dispute.

_____

_____

_____

List and describe all criminal proceedings or hearings concerning business related offenses in which the Proposer, its principals or officers or predecessor organization(s) were defendants.

_____

_____

_____

Has the Proposer, its principals, officers or predecessor organization(s) been CONVICTED OF A Public Entity Crime, debarred or suspended from bidding by any government entity? If so, provide details.

_____

_____

_____

Are you an ☐ Original provider ☐ sales representative ☐ distributor, ☐ broker, ☐ manufacturer ☐ other, of the commodities/services proposed upon? If other than the original provider, explain below.

_____

_____

_____

Have you ever been debarred or suspended from doing business with any governmental agency? If yes, please explain:

_____

_____

_____

_____

Describe the firm's local experience/nature of service with contracts of similar size and complexity, it the previous three (3) years:

_____

_____

_____

_____

The PROPOSER acknowledges and understands that the information contained in response to this Qualification Statement shall be relied upon by CITY in awarding the contract and such information is warranted by PROPOSER to be true. The discovery of any omission or misstatement that materially affects the PROPOSER'S qualifications to perform under the contract shall cause the CITY to reject the Bid, and if after the award, to cancel and terminate the award and/or contract.

_____

By _____
(Signature)

DOCUMENT FOR COMMISSION REVIEW

Attachment I

ACORD CERTIFICATE OF LIABILITY INSURANCE

DATE (MM/DD[YY)

PRODUCER

THIS CERTIFICATE IS ISSUED AS A MATTER OF INFORMATION ONLY AND CONFERS NO RIGHTS UPON THE CERTIFICATE HOLDER. THIS CERTIFICATE DOES NOT AMEND, EXTEND OR ALTER THE COVERAGE AFFORDED BY THE POLICIES BELOW.

INSURERS AFFORDING COVERAGE

INSURED

YOUR COMPANY NAME HERE

INSURER A:
INSURER B,
INSURER C,
INSURER D,
INSURER E,

Companies providing coverage

COVERAGES

THE POLICIES OF INSURANCE LISTED BELOW HAVE BEEN ISSUED TO THE INSURED NAMED ABOVE FOR THE POLICY PERIOD INDICATED. NOTWITHSTANDING ANY REQUIREMENT TERM OR CONDITION OF ANY CONTRACT OR OTHER DOCUMENT WITH RESPECT TO WHICH THIS CERTIFICATE MAY BE ISSUED OR MAY PERTAIN THE INSURANCE AFFORDED BY THE POLICIES DESCRIBED HEREIN IS SUBJECT TO ALL THE TERMS, EXCLUSIONS AND CONDITIONS OF SUCH POLICIES. AG6REGATE LIMITS SHOWN MAY HAVE BEEN REDUCED BY PAID CLAIMS.

INSR LTR	TYPE OF INSURANCE	POLICY NUMBER	POLICY EFFECTIVE DATE (MM/DDIYY)	POLICY EXPIRATION DATE (MM/DDIYY)	LIMITS	
	GENERAL LIABILITY COMMERCIAL GENERAL LIABILITY CLAIMS MADE OCCUR GEN'L AGGREGATE LIMIT APPLIES PER: policy project loc	Must Include General Liability			EACH OCCURRENCE FIRE DAMAGE (Any one fire) MED EXP (Any one person) PERSONAL & ADV INJURY GENERAL AGGREGATE PRODUCTS - COMP/OP AGG	$ $ $ $ $ $
	AUTOMOBILE LIABILITY ANY AUTO ALL OWNED AUTOS SCHEDULED AUTOS HIRED AUTOS NON-OWNED AUTOS	SAMPLE CERTIFICATE				
	GARAGE LIABILITY ANY AUTO				AUTO ONLY - EA ACCIDENT OTHER THAN AUTO ONLY: EA ACC AGG	$ $ $
	EXCESS LIABILITY OCCUR CLAIMS MADE DEDUCTIBLE RETENTION $				EACH OCCURRENCE AGGREGATE	$ $ $ $ $
	WORKERS COMPENSATION AND EMPLOYERS' LIABILITY				WC STATU-TORY LIMITS OTH-ER E.L. EACH ACCIDENT E.L. DISEASE - EA EMPLOYEE E.L. DISEASE - POLICY LIMIT	$ $ $
	OTHER					

Certificate must contain wording similar to what appears below

DESCRIPTION OF OPERATIONS/LOCATIONSIVEHICLES/EXCL

"THE CERTIFICATE HOLDER IS NAMED AS ADDITIONALLY INSURED WITH REGARD TO GENERAL LIABILITY"

CERTIFICATE HOLDER

ADDITIONAL INSURED; INSURER LETTER:

CANCELLATION

SHOULD ANY OF THE ABOVE DESCRIBED POLICIES BE CANCELLED BEFORE THE EXPIRATION AIL 30 DAYS WRITTEN LEFT.

City of Pembroke Pines
10100 Pines Boulevard
Pembroke Pines FL 33026

City Must Be Named as Certificate Holder

AUTHORIZED REPRESENTATIVE

ACORD 25-S (7/97)

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DOCUMENT FOR COMMISSION REVIEW

Attachment J

PROPOSED ORDINANCE 2010-15

ORDINANCE NO. 1665

AN ORDINANCE OF THE CITY COMMISSION OF THE CITY OF PEMBROKE PINES, FLORIDA, AMENDING AND RESTATING CHAPTER 73 OF THE CODE OF ORDINANCES OF THE CITY OF PEMBROKE PINES, "THE PEMBROKE PINES DANGEROUS INTERSECTION SAFETY ACT", IN ITS ENTIRETY; AUTHORIZING THE CITY TO PERMIT AND IMPLEMENT THE USE OF TRAFFIC INFRACTION DETECTORS FOR RED LIGHT INFRACTIONS PURSUANT TO STATE LAW; PROVIDING FOR DEFINITIONS; PROVIDING FOR TRAFFIC INFRACTION ENFORCEMENT OFFICERS; PROVIDING FOR THE TRANSITION FROM THE CITY'S ORDINANCE-BASED ENFORCEMENT PROGRAM TO THE STATE AUTHORIZED ENFORCEMENT PROGRAM, INCLUDING AUTHORIZATION FOR APPEAL HEARINGS, PENALTIES, IMPOSITION OF ADMINISTRATIVE CHARGES AND COLLECTION FOR ALL VIOLATIONS ISSUED BY THE CITY THROUGH JUNE 30, 2010; AUTHORIZING CITY ADMINISTRATION TO TAKE ALL STEPS NECESSARY TO IMPLEMENT AND OPERATE THE ENFORCEMENT PROGRAM PURSUANT TO THE REQUIREMENTS OF STATE LAW; PROVIDING FOR THE LOCATION OF TRAFFIC INFRACTION DETECTORS WITHIN THE CITY; PROVIDING FOR SEVERABILITY; PROVIDING FOR CODIFICATION; PROVIDING AN EFFECTIVE DATE.

WHEREAS, the City Commission of the City of Pembroke Pines adopted Ordinance 1527, which enacted the Pembroke Pines Dangerous Intersection Safety Act, the provisions of which were codified in Chapter 73 of the City's Code of Ordinances ("Ordinance 1527"); and,

WHEREAS, Ordinance 1527 authorized the City to enforce civil infractions for violations of red light indications on traffic control signals, using traffic infraction detectors;

WHEREAS, Ordinance 1527 was adopted pursuant to the City's Constitutional and home rule authority in Article VII, Section 2 of the Florida

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Constitution and Chapter 166, Florida Statutes, as well as Section 318.008, Florida Statutes, which grants municipalities, with respect to streets and highways under their jurisdiction and within the reasonable exercise of police power, authority to regulate and monitor traffic by means of police officers and security devices, as well as other authority provided by law; and,

WHEREAS, since the adoption of Ordinance 1527, the City of Pembroke Pines has successfully implemented Ordinance 1527 through the installation of an enforcement camera, including the issuance of notices of violations, the collection of fees and costs, and the conduct of hearings in appeals of City-issued notices of violation; and,

WHEREAS, on May 13, 2010, Governor Charlie Crist signed the "Mark Wandall Safety Program," enacted as Law of Florida, Chapter 2010-80 (the "State Act"), which, among other things, now expressly preempts to the state the subject matter of using unmanned cameras/monitoring devices, referred to as traffic infraction detectors in the State Act and defined therein, to enforce violations of red light indications on traffic control devices as of July 1, 2010; and

WHEREAS, the City Commission of the City of Pembroke Pines finds that implementation of the enforcement program pursuant to the State Act effective July 1, 2010, will promote, protect and improve the health, safety and welfare of its citizens, consistent with the authority of and limitations on the City pursuant to the Florida Constitution and Florida Statutes

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WHEREAS, the City Commission desires to implement the enforcement program set forth in the State Act, and provide for a transition from the City's program to the enforcement program set forth in the State Act; now, therefore

BE IT ORDAINED BY THE CITY COMMISSION OF THE CITY OF PEMBROKE PINES, FLORIDA:

Section 1. The foregoing "WHEREAS" clauses are hereby ratified and confirmed as being true and correct and are hereby made a specific part of this Ordinance upon adoption hereof.

Section 2. Chapter 73 of the Code of Ordinances of the City of Pembroke Pines, entitled Pembroke Pines Dangerous Intersection Safety Act, shall be amended and restated to read as follows:

Chapter 73: Red Light Infraction Enforcement Pursuant to State Law.

§ 73.01 Intent.

The purpose of this Chapter is to authorize the use of traffic infraction detectors to promote compliance with red light signal directives as defined in and prescribed by Laws of Florida, Chapter 2010-80 (the "State Act"), and to provide for the transition from the City's ordinance-based program, which had existed prior to the state's decision to preempt the area of unmanned cameras/monitoring systems to enforce compliance with red light signal directives. Consistent with State law, this Chapter will also supplement law enforcement personnel in the enforcement of red light signal violations and shall not prohibit law enforcement officers from issuing a citation for a red light signal violation in accordance with other statutory traffic enforcement techniques.

§73.02 Authorization for Enforcement Program.

Effective July 1, 2010, the City shall enforce compliance with red light signal directives pursuant to the State Act, to utilize image capture technologies. The City shall comply with the requirements of the State Act, including without limitation the enforcement of Violations as defined herein and in the State Act, authorized fines for violations, citation forms, review of affidavits of non-

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responsibility, reporting obligations to state agencies, payments to the state, and public notice. This Chapter shall not supersede, infringe, curtail or impinge upon state laws related to red light signal violations or conflict with such laws.

§73.03 Definitions.

The definitions set forth in the State Act, as may be amended, shall apply to the City's implementation and application of the State Act. In addition, the following definitions shall apply to this Chapter:

(a) Notice of Violation. Initial notification from the City to the registered owner of a motor vehicle involved in a violation, notifying the registered owner of the violation, and containing information required by the State Act.

(b) Recorded Images. Images recorded by a traffic infraction detector, which includes but is not limited to photographic or electronic images or streaming video.

(c) Traffic Citation. Notification to the registered owner of a motor vehicle involved in a violation who failed to timely pay the fine pursuant to a Notice of Violation, and containing all information required by the State Act.

(d) Traffic Infraction Enforcement Officer. The City Police Department employee designated pursuant to Section 73.04 herein, who meets the requirements of the State Act and who shall review the Recorded Images and issue Notices of Violation and Traffic Citations pursuant to the requirements of this Chapter and the State Act.

(e) Violation. Violation of Sections 316.074(1) or 316.075(1)(c)1, Florida Statutes.

§ 73.04 Traffic Infraction Enforcement Officer

The City's Police Chief shall designate Traffic Infraction Enforcement Officers, who shall meet the qualifications set forth in the State Act.

(a) A Traffic Infraction Enforcement Officer shall review the Recorded Images that comply with the requirements of the State Act, prior to the issuance of a Notice of Violation pursuant to the State Act. Once the Traffic Infraction Enforcement Officer has verified the accuracy of the Recorded Images he or she shall note the violation and a Notice of

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Violation shall be sent to the registered owner of the involved vehicle pursuant to the State Act no later than thirty (30) days after the violation. The Notice of Violation shall be sent by first-class mail.

(b) The State Act provides that in the event of non-payment of the Notice of Violation, the City shall issue a Traffic Citation to the vehicle owner. In the event of non-payment of the Notice of Violation within thirty (30) days of notification, the Recorded Images will be reviewed again by a Traffic Infraction Enforcement Officer, who will take all necessary action required by the State Act to send a Traffic Citation to the registered owner of the involved vehicle pursuant to the State Act no later than sixty (60) days after the Violation. The Traffic Citation shall be sent by certified mail.

§73.05 Transition from City's Ordinance-based Enforcement Program.

Prior to the express preemption of the subject matter by the state through the adoption of the State Act, the City had been enforcing compliance with red light signal directives through Ordinance 1527. Effective July 1, 2010, the City shall no longer enforce Violations using its ordinance.

(1) No Notices of Infraction, as defined in Ordinance 1527, shall be issued by the City pursuant to Ordinance 1527 after June 30, 2010, notwithstanding the date of the observed violation.

(2) All Notices of Infractions issued by the City pursuant to Ordinance 1527 shall be processed and enforced pursuant to Ordinance 1527 until payment is received by the City.

(3) All appeals of Notices of Infractions received by the City for notices issued on or before June 30, 2010, shall be in accordance with the requirements of Ordinance 1527. All appeals for Notices of Infractions issued on or before June 30, 2010 shall be scheduled for hearing at the next available hearing date.

(4) The penalty provisions, administrative charges, appeals and collection procedures for Notices of Infractions established by Ordinance 1527 shall continue in full force and affect solely as to Notices of Infractions issued by the City on or before June 30, 2010.

(5) The City shall continue to use the unmanned camera/monitoring devices installed pursuant to Ordinance 1527 in conformance with the State Act.

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Section 3. The City Administration, including without limitation the City Manager, the Finance Department, the Police Department and the City Attorney, are authorized to take all steps necessary to implement and operate the Enforcement Program to comply with the requirements of the State Act.

Section 4. City Administration and the Police Department shall select the locations of the traffic infraction detectors within the City; provided that such locations comply with the requirements of the State Act, and subject to review by the City Commission at the request of the City Commission.

Section 5. Severability. If any section, sentence, clause, or phrase of this Ordinance is held to be invalid or unconstitutional by any court of competent jurisdiction, then said holding shall in no way affect the validity of the remaining portions of this Ordinance.

Section 6. Inclusion in Code. It is the intention of the City Commission of the City of Pembroke Pines, Florida, that the provisions of this Ordinance shall become and be made a part of the City of Pembroke Pines Code of Ordinances; and that the sections of this ordinance may be renumbered or relettered and the word "ordinance" may be changed to "section," "article," or such other appropriate word or phrase in order to accomplish such intentions.

Section 7. Effective Date. This Ordinance shall become effective upon adoption by the City Commission.

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PASSED AND ADOPTED BY THE CITY COMMISSION OF THE CITY OF PEMBROKE PINES, FLORIDA ON FIRST READING THIS 2nd DAY OF JUNE, 2010.

PASSED AND ADOPTED BY THE CITY COMMISSION OF THE CITY OF PEMBROKE PINES, FLORIDA ON SECOND READING THIS 16th DAY OF JUNE, 2010.

CITY OF PEMBROKE PINES, FLORIDA

ATTEST: 6/21/10

JUDITH A. NEUGENT, CITY CLERK

BY: _____

MAYOR FRANK ORTIS

APPROVED AS TO FORM:

Julie Klahn 6/15/10

OFFICE OF THE CITY ATTORNEY

ORTIS	AYE
MCCLUSKEY	AYE
CASTILLO	AYE
SHECTER	AYE
SIPLE	AYE

City of Pembroke Pines

REFERENCES FORM

Provide specific examples of similar contracts. References should be from the last five years and should be capable of explaining and confirming your firm's capacity to successfully complete the scope of work outlined herein. **This form should be duplicated for each reference and any additional information that would be helpful can be attached.**

Reference Contact Information:

Name of Firm, City, County or Agency: _____

Address: _____

City/State/Zip: _____

Contact Name: _____ Title: _____

E-Mail Address: _____

Telephone: _____ Fax: _____

Project Information:

Name and location of the project: _____

Nature of the firm's responsibility on the project: _____

_____

_____

_____

Project duration: _____ Completion (Anticipated) Date: _____

Size of project: _____ Cost of project: _____

Work for which staff was responsible: _____

Contract Type: _____

The results/deliverables of the project: _____